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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

JULY 29, 2025

[TECHNICAL DIFFICULTIES]

>> -- THERE WAS NOT ABLE TO MEET THIS GOAL GIVEN ITS FINANCIAL CHALLENGES. AS A RESULT -- REASSESS -- ALTHOUGH RECOMMENDATION STATUSES HAVE CHANGED RIGHT -- REQUIRED BY THE CITY'S RESERVE POLICY AND PROPOSE THAT THE CITY COUNCIL -- PLANNERS THE GENERAL FUND RESERVE. THE CITY HAS SINCE CONTRACTED WITH HOA TO COMPLETE A RISK ASSESSMENT OF THE GENERAL RESERVE FUND POLICY. TONIGHT, AS YOU WILL SEE CITY COUNCIL WILL BE CONSIDERING IT UPDATE BASED ON THE RECOMMENDATION TO DEVELOP A PLAN TO REPLENISH THE RESERVES AND REVISE THE FUNDING ROOMS WERE LINED WITH THE FINANCIAL LEGALITY AND ATTEMPTED FIRST OF ALL. ADDITIONALLY, -- RECOMMEND A BUDGET PLAN REDUCE THE CITY'S ABUNDANT CAPITAL AND MAINTENANCE NEEDS. I THINK YOU ARE ALL AWARE THAT MR. FF, WHICH PASSED IN NOVEMBER, WILL HELP WITH THIS AND ESTIMATE MILLIONS ANNUALLY FOR 14 YEARS. THIS WILL INVOLVE A PLAN TO PRIORITIZE FUNDS FOR CAPITAL AND THE BALLOT MEASURE ALSO -- [INDISCERNIBLE] THAT UPDATE.

>> MAYOR A. ISHII: WE ARE GOING TO NOW MOVE TO PUBLIC COMMENT ON

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NONAGENDA MATTERS. IF YOU HAVE A PUBLIC COMMENT FOR NON-AGENDA MATTERS.

>> FIVE CARDS AND GO TO REMOTE PUBLIC COMMENTS. IF YOUR NAME IS CALLED, COME FORWARD. [INDISCERNIBLE] [LISTING NAMES]

>> MAYOR A. ISHII: ONE OF OUR PUBLIC COMMENTORS HAS MANY PEOPLE WITH HIM [INDISCERNIBLE]

>> [INDISCERNIBLE] YES. GOOD EVENING.

>> PUBLIC SPEAKER: -- DISMAY ON THE PART NEIGHBORS -- WE'VE ALWAYS BEEN SUPPORTIVE OF THIS AND WE WILL ALWAYS BE SUPPORTIVE [INDISCERNIBLE] BUT THERE'S BEEN A LOT OF COLLATERAL DAMAGE TO NEIGHBORS AND ALSO THE HOMEOWNERS IN THAT AREA. GARY ABRAMS -- WE ARE ASKING THE CITY TO BASICALLY DO TWO THINGS. INSTITUTE, ONE, ENSURE THAT WE HAVE --

>> MAYOR A. ISHII: I'M SORRY, YOU'LL HAVE TO [INDISCERNIBLE] WE GOT HERE. THANK YOU. THANKS SO MUCH.

>> PUBLIC SPEAKER: WHERE WE GO NEXT WILL BE EASIEST.

>> MAYOR A. ISHII: SURE THAT'S FINE.

>> PUBLIC SPEAKER: HELLO. GOOD EVENING. MY NAME IS GARY INGRAMS.

>> MAYOR A. ISHII: JUST SPEAK INTO THE --

>> PUBLIC SPEAKER: THANK YOU. WE HAVE LIVED IN BERKELEY FOR DECADES. WENT TO SCHOOL AT BERKELEY. [INDISCERNIBLE] INSTALL ABOVEGROUND TRANSFORMER AND A RETAINING WALL AND HE JUST TURNED A DISASTER. -- INSTEAD, I'VE BEEN LEFT WITH AN ABOVEGROUND

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TRANSFORMER -- NONE OF WHICH WE AGREED TO AND IN FRONT OF MY HOUSE, GUYS WOULD LIKE -- WE INVEST FOR ANSWERS IT OTHER REQUESTS. WHAT WE'RE ASKING IS WHETHER THE COUNSEL HAS DIRECTED THE CITY TO FOLLOW UP --

>> MAYOR A. ISHII: THANK YOU. I'M SORRY, YOUR COMMENT -- THANK YOU SO MUCH. HAVE A GOOD NIGHT.

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: -- FOR ENFORCEMENT OF THE SOURCE OF THE INCOME DISCRIMINATION ORDINANCE THAT WAS PASSED IN BERKELEY IN 2017 AND PASSED BY THE SAME IN 2019 DO NOT DISCRIMINATE AGAINST PERSONS BASED ON THEIR VOUCHERS THEIR SUBSIDIES AND HOUSING AGAIN, COUNCIL HAS THIS UNANIMOUSLY WITH STANDARD FORM TO DATE, THERE HASN'T BEEN ANY ENFORCEMENT STRUCTURES SET UP LOCALLY AND THIS DISCRIMINATION CONTINUES. OF HIS LAST WEEK SEVERAL TIMES TRYING TO CHANGE BUILDINGS. SHE HAS SECTION 8 VOUCHER AND HAS REPEATEDLY BEEN DENIED RELEASE PROBABLY BECAUSE SHE IS A SECTION 8 TENANT. BUT THINKING.

>> MAYOR A. ISHII: THANKS, CAROL.

>> PUBLIC SPEAKER: HI, EVERYBODY. [INDISCERNIBLE] SAN FRANCISCO -- AND WERE ON THEIR WAY -- AND THE [INDISCERNIBLE] NOT LET THE FAMILY VISIT. THEY DESERVE NO RESPECT WHATSOEVER. AND THEY -- THE CHILDREN OF GAZA BY STARVING THEM TO GET -- DEATH. YOU SHOULD BE ASHAMED OF YOURSELVES NOT TO PUT A CEASE-FIRE IN GAZA

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AND ALLOW THIS GENOCIDE TO CONTINUE. THANK YOU.

>> PUBLIC SPEAKER: HI. I'M HERE ALONGSIDE MANY OF MY COWORKERS.

[INDISCERNIBLE]

>> PUBLIC SPEAKER: VIEW OF THE CEILING OR, LIKE, A 360 VIEW. AND THAT I WANT TO ENCOURAGE YOU ALL TO TALK TO THE CITY OF OAKLAND, HOW THEY RUN THEIRS BECAUSE THEY CAN RUN IT REALLY WELL AND ACTUALLY GIVES THE VIEWER'S OPTIONS. IF SOMEONE IS SHOWING SLIDES, I CAN MAKE IT BIGGER OR SMALLER. LASTLY, I WANT TO CHECK ABOUT THE COUNCILMEMBER THAT IS NOT ON SITE ARE THEY GETTING THE SAME AUDIO THAT WE ARE OUT HERE? BECAUSE ALL YOU'RE GETTING IS INDISCERNIBLE AND THAT'S WITH THE TRANSCRIPT INDISCERNIBLE. --

>> PUBLIC SPEAKER: HI, GUYS. THANK YOU FOR TAKING MY COMMENT JUST WANTED TO LET YOU GUYS KNOW APPARENTLY THERE'S A TSUNAMI WARNING IN EFFECT AND HOPEFULLY IS A NOTHING-BURGER, BUT HOPEFULLY WOULD BE GOOD TO USE THIS TIME TO LET PEOPLE KNOW, PEOPLE HAVE AN INSIDE LINE TO EMERGENCY SERVICES WHAT WE ARE SUPPOSED TO DO. IT'S KIND OF HARD TO READ THE MESSAGE ON WHETHER UNDERGROUND, BUT HOPEFULLY NOT A BIG DEAL. I GUESS EXTENDS FROM SEISMIC ACTIVITY IN ALASKA. AND THEN JUST BRIEFLY I WANTED TO OFFER A PRAYER FOR THE CHILDREN IN GAZA WHO ARE BEING STARVED RIGHT NOW AND ANYTHING THAT YOU GUYS COULD DO FOR THOSE CHILDREN WOULD BE REALLY IMPORTANT AS THE SITUATION IS NOW VERY TIRED. THEY ARE IN STAGE V FAMINE.

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>> [INDISCERNIBLE]

>> OUR OFFICE OF EMERGENCY SERVICES IS MONITORING THE TSUNAMI AND WE WILL PUT OUT ALERTS US IN THIS PEOPLE NEED TO TAKE ACTION.

>> MAYOR A. ISHII: THANK YOU.

>> CITY CLERK: THE NEXT COMMENT IS FROM PHONE ENDING IN 000.

>> PUBLIC SPEAKER: -- THAT HAPPENED TODAY THE BIG ONE IS COMING. WOULD ALSO MY POINT WHAT IS HAPPENING IN GAZA, A DISGRACE. INNOCENT CHILDREN, ADULTS, AND WOMEN -- WE'LL HAVE A BUNCH OF CRIMINALS RUNNING THE WHOLE WORLD WHETHER AMERICA, FRANCE, WHATEVER. WE NEED TO STOP THE GENOCIDE AS SOON AS POSSIBLE. IT COULD HAPPEN HERE. WHAT POWER DO WE HAVE? NOTHING BECAUSE OF CRIMINALS RUNNING THIS WORLD. HAVE A GOOD DAY. PROBABLY CALL YOU LATER ON.

>> MAYOR A. ISHII: THANK YOU.

>> CITY CLERK: AND NEXT IS JOCELYN.

>> PUBLIC SPEAKER: I'M A BERKELEY RESIDENT AND ALSO AN OFFICER IN OUR C.S.U. CHAPTER AND I'M REALLY BASICALLY SPEAKING FOR MYSELF. IT'S NOT NEW COMMENTS TONIGHT. I JUST WANTED TO EXPRESS SOLIDARITY WITH THE URBAN ORE WORKERS THAT ARE THERE TONIGHT AND REALLY WANTED TO THE COUNCIL TO TAKE INTO ACCOUNT, SORRY I DON'T KNOW THE CONTRACT BUT JUST EXPRESS MY SOLIDARITY WITH WORKERS. THANK YOU SO MUCH. AND THE LAST SPEAKER IS ELANA AUERBACH.

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>> PUBLIC SPEAKER: EITHER. GOOD EVENING. SO WHILE THERE'S STARVATION HAPPENING, THANK YOU FOR THE SPEAKERS HEREOF MENTIONED THE STARVATION IN GAZA AND WE HAVE NOT HEARD A WORD FROM OUR LOCAL LEADERS. IN THE BERKELEY REC DEPARTMENT OF COURSE SUMMERCAMP SPONSORS A SUMMER CAMP. WELL, IT WAS NOTICED PARK THE CAMP, WHICH HAS YOUNG IMPRESSIONABLE CITY CAMPERS, WERE CHEERING FOR TEAM ISRAEL WHILE AWAITING ISRAELI FLAGS. THE PEOPLE WHO SAW THEM WERE PALESTINIAN, WHO WERE MUSLIM, ARABS WERE HIGHLY OFFENDED. WONDERING WHOSE IDEA WAS THAT HOW WAS THAT OKAY AT THIS MOMENT? ALSO, I'D LIKE TO MENTION --

>> MAYOR A. ISHII: I'M SORRY, YOUR TIME IS UP. [INDISCERNIBLE] SO MOVING ON TO OUR CONSENT CALENDAR. SORRY -- DO ANY OF THE COUNCILMEMBERS HAVE ANY COMMENTS? [MULTIPLE SPEAKERS]

>> MAYOR A. ISHII: FOLKS, I'M SORRY, IF YOU CAN KEEP IT DOWN BECAUSE THE SOUND IS ALREADY TOUGH HERE TONIGHT.

>> I JUST HAVE A FEW BRIEF COMMENTS. I HAVE A COMMENT ON ITEM 20, WHICH IS PROJECT MENTATION -- SAFE STREETS INITIATIVE. THIS IS AN ITEM THAT WE FOUND -- TYPE WAYS TO HELP ADDRESS THAT TYPE OF PROGRAM. REALLY EXCITED FOR THEM. THIS IS A CRITICAL STEP TOWARD EMPLOYING THE SAFE STREET VISION ZERO AND A LOT OF OTHER CITY PERMITS. I THINK THAT'S REALLY CRITICAL MOVES AND I'M THRILLED ABOUT IT. ITEM NUMBER 27. I'M PLEASED TO ANNOUNCE THAT THIS PHONE WILL HAVE SEPTEMBER 21'S FIRST SUNDAY EVENT. WE ARE

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REALLY PUSHING $500 FROM THE DA DISCRETIONARY FUNDS TO HELP FUND IT AND I INVITE COUNCILMEMBERS TO CONTRIBUTE IF THEY LIKE. IT'S GOING TO BE A RENEWABLE ENERGY FESTIVAL. THE -- CLUBHOUSE WE ARE ALMOST CERTAIN THE FUNDS RELINQUISHED TO THE GENERAL FUND FOR THIS PURPOSE. BROUGHT TO US -- AND AM ACTING AS COSPONSORS COUNCILMEMBERS TREGUB AND O'KEEFE. THERE'S STILL ONE SPOT IF ANYBODY WANTS TO JOIN US. I'D BE GRATEFUL. THANKS.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU. I'D LIKE TO CONTRIBUTE $200 TO ITEM NUMBER SEVEN AND IF THERE'S ANY OPEN SPOT COULD I BE ADDED AS A SPONSOR?

>> [INDISCERNIBLE]

>> C. LUNAPARRA: GREAT. THANKS SO MUCH.

>> MAYOR A. ISHII: COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: IT HAS BEEN REQUESTED, BUT. [INDISCERNIBLE] BUT YEAH. THANK YOU FOR ADDING ME AS A COSPONSOR AND I DON'T THINK THAT AUTOMATICALLY [INDISCERNIBLE] HUNDRED DOLLARS. I'D ADD MORE, BUT [INDISCERNIBLE]

>> MAYOR A. ISHII: OKAY. THANK YOU. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES, THANK YOU VERY MUCH, MME. MAYOR. I WANTED TO LET YOU KNOW THERE'S AN ITEM HERE. I BELIEVE IT'S ITEM NUMBER FOUR THAT IS PUTTING OUT RP TO DO THE OLONE? [INDISCERNIBLE]

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ITEM NUMBER 26 I WANTED TO CALL OUT THANK YOU TO COUNCILMEMBER TREGUB FOR PUTTING THIS FORWARD. THIS IS AN ITEM OF SUPPORT FOR LEGISLATION AT THE STATE LEVEL. THE NO SECRET POLICE ACT TO PROHIBIT NONESSENTIAL FACE COVERING FOR LAW ENFORCEMENT. IT'S SHOCKING THAT THIS ISN'T ALREADY THE LAW. I'M WONDERING IF THERE'S SPACE FOR ME TO BE A COSPONSOR. THANK YOU FOR YOUR LEADERSHIP ON THAT.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER BARTLETT.

>> B. BARTLETT: GOOD MORNING -- OR GOOD EVENING --

>> MAYOR A. ISHII: WE LOST YOU, COUNCILMEMBER.

>> B. BARTLETT: SPOTTY INTERNET HERE. I ALSO WANTED TO CONTRIBUTE TO ITEM 27 $250. THEN --

>> MAYOR A. ISHII: OH, YOU MUTED.

>> B. BARTLETT: ALSO, I WANTED TO VERY BRIEFLY SEND LOVE TO THE FAMILY JONATHAN -- HE WAS A CONSTRUCTION WORKER WORKING IN MY DISTRICT AND THURSDAY HE FELL TO HIS DEATH ON THE JOB. HE WAS KNOWN AS J.D. TO HIS FAMILY. MY FOR YOUR -- MY PRAYERS GO OUT TO HIS FAMILY. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANK YOU, MADAM MAYOR. I HAVE JUST A COUPLE OF COMMENTS ON CONSENT CALENDAR. FIRST IS ON ITEM 7. -- FORCED THIS WORK TO FIND THE AMITA FIRE SERVICES. IT'S AN IMPORTANT ROLE. AS WE TALKED ABOUT, THERE ARE A LOT OF DIFFERENT RESPONSIBILTIES HERE IN OUR WILDFIRE RESPONSE AND CORD MEETING WITH ALL OF

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ORIGINAL PARTNERS AND REGIONAL ENTITIES IS A BIG BUILDING BLOCK. APPRECIATE THAT POSITION IS BEING FILLED TO HELP DRAFT THAT PROCESS FORWARD. THANK YOU FOR BRINGING THAT AHEAD. ITEM NUMBER 14, THANKS -- THANK YOU FOR YOUR LEADERSHIP. LASTLY, I'D BE HAPPY TO CONTRIBUTE $250 FROM OUR OFFICE ACCOUNT TO ITEM 27 ON SUNDAY. THANK YOU TO COMMISSIONER -- THAT'S IT FOR ME.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU. [INDISCERNIBLE]

>> MAYOR A. ISHII: OKAY. I THINK MY NUMBER WAS OFF. COUNCILMEMBER O'KEEFE, WERE YOU ONE OR TWO? I THINK NUMBER ONE. IN THAT CASE I THINK CONSUMER TREGUB, GO AHEAD.

>> I. TREGUB: THANK YOU. I WOULD LIKE TO THANK COUNCILMEMBER TAPLIN FOR PUTTING FORWARD TWO IMPORTANT ITEMS THIS EVENING. ITEM 24, THE BERKELEY -- ITEM 25, THE BERKELEY DEAL WORKFORCE DEVELOPMENT. HONORED TO COSPONSOR BOTH. ITEM 26, THE RESOLUTION IN SUPPORT OF CALIFORNIA SENATE BILL 627 OR THE NO SECRET POLICE ACT. I WOULD LIKE TO THANK MY COLLEAGUES FOR KEEPING THIS ON CONSENT AND I'D LIKE TO ADD COUNCILMEMBER KESARWANI IS A COSPONSOR. ITEM 27, BERKELEY'S FIRST SUNDAY EVENT. VERY EXCITED TO SUPPORT THIS ITEM AND THANK YOU, HUMBERT, FOR ADDING ME AS A COSPONSOR. I WOULD LIKE TO CONTRIBUTE $250 FROM MY 13 ACCOUNT. DESPITE THE BEST EFFORTS OF THE TRUMP ADMINISTRATION AS WELL AS A UTILITY MONOPOLY TO MAKE IT AS DIFFICULT AS POSSIBLE FOR

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EVERYDAY FOLKS TO JUST BE ABLE TO CONTROL THEIR ENERGY SOURCE AND BE ABLE TO HAVE ACCESS TO LOCAL RENEWABLE ENERGY. IT STILL IS ONE OF THE MOST AFFORDABLE WAYS TO BE ABLE TO SUPPORT OUR PLANET AND CONTRIBUTE TO CLIMATE RESILIENCY. THANK YOU SO MUCH FOR BRINGING FORWARD THIS ITEM. OAKLEY POWER TO THE PEOPLE.

>> MAYOR A. ISHII: SORRY, I SHOULD TELL YOU, COUNCILMEMBER, YOUR MIC IS ON. DID YOU HAVE SOMETHING ELSE YOU WANT TO SAY?

>> YES.

>> MAYOR A. ISHII: GO AHEAD.

>> THAT'S NOT WHY IT WAS ON. -- PLEDGED TO GIVE $500 TO ITEM 27. [INDISCERNIBLE] AND I ALSO WOULD LIKE TO THANK TAPLIN FOR ADDING ME AS A COSPONSOR. I'M WORRIED I'M NOT SQUARE ENOUGH ON IT. [INDISCERNIBLE] AND THAT IS ALL MY COMMENTS FOR NOW.

>> MAYOR A. ISHII: OH, GO AHEAD.

>> THANK YOU. I JUST WANTED TO BRING ATTENTION TO COUNCILMEMBER TAPLIN'S ITEM 24 AND TO MAKE CLEAR FOR THE RECORD THAT WE ARE CANCELING THE VERSION THAT IS ENSCONCED RATHER THAN THE INITIAL ITEM, IS THAT CORRECT?

>> YES.

>> THANK YOU.

>> MAYOR A. ISHII: I WOULD LIKE TO THANK DIRECTOR -- FOR NUMBER 20 I ALSO WANT TO APPRECIATE THE LAUNCH OF FF AND HIRING STAFF TO IMPLEMENT THE PRIORITIZED PROJECTS. IT'S VERY EXCITING AND I

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GOT A CHANCE TO ATTEND FIRST, SO VERY THRILLED ABOUT THAT. I WILL ALSO PUT $250 MY ACCOUNT TO 27. EVERYONE ELSE HAS SPOKEN, SO IS THERE A MOTION PLEASE SO MOVED.

>> SECOND.

>> MAYOR A. ISHII: WE HAVE COUNCILMEMBER BARTLETT ONLINE ALSO [INDISCERNIBLE]

>> MAYOR A. ISHII: SORRY, WE HAD A VERY MESSED UP MEETING. CAN I TAKE ALL THE COMMENTS ON INFORMATION ITEMS ONLY, PLEASE.

>> CITY CLERK: 23A, 23B, AND [INDISCERNIBLE] ACCESSIBILITY GUIDELINES.

>> I CAN ADD TO THAT. [INDISCERNIBLE] STAFF WILL WORK WITH TASK FORCE COMMISSION TO COME UP WITH SOME SOLUTIONS TO THE RECOMMENDATION WE DON'T DISAGREE WITH.

>> MAYOR A. ISHII: DOES THAT CLEAR?

>> [INDISCERNIBLE] 23B ON CONSENT.

>> MAYOR A. ISHII: OKAY. SORRY, IS THERE PUBLIC COMMENT ON CONSENT PERMISSION ITEMS ON THANK YOU.

>> HELLO, EVERYONE. THE ORGANIZER FOR SUNDAY. JUST WANT TO SAY THANK YOU VERY MUCH FOR ALL YOUR SUPPORT OF THIS EVENT. WE DID SIGN A CONTRACT TODAY FOR -- CLUBHOUSE, SO THANK YOU TO THE CITY FOR HAVING AN EXCEPTION AND LETTING US HAVE IT RELATE. WE ARE SO EXCITED -- SOLAR FESTIVITY OFFICIALLY AVAILABLE. SOME AMAZING -- ENCOURAGER OFFICERS TO SHARE THIS IN THE NEWSLETTERS. WILL BE

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COLLECTING FROM EVERY SINGLE POSSIBLE RESOURCE AND TO ENSURE PEOPLE HAVE A CLEANER FUTURE. THANK YOU AGAIN SO MUCH.

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: -- ABOUT DISABILITY RIGHTS AND ALSO LEAST TO SEE THE CITY'S OFFICE IS WORKING WITH THE COMMISSION IN A COLLABORATIVE MANNER -- SPEAKING TO ITEM 24, THE BERKELEY NIGHTLIFE COUNCIL, THIS IS A VERY IMPORTANT ITEM. ALSO DAY LIFE ACTIVITY IN BERKELEY. I AGAIN POINT OUT THAT FEBRUARY 2024, COUNCIL UNANIMOUSLY PASSED -- FOR WOMEN ITEM THAT AT THE TIME THE -- WOULD DEFINITELY BE BUDGETED. NOW WE ARE IN A BUDGET CRISIS, SO THAT'S PROBLEMATIC. HOPEFULLY, THE ISSUE ITSELF DOESN'T DIE AS FAR AS THE SAFETY EFFORTS BECAUSE THEY ARE VERY MUCH NEEDED. OAKLAND IS ACTUALLY HAVING THE BUSINESSES PARTICIPATE IN FUNDING AND COLLABORATING WITH THE CITY OF OAKLAND SO THAT THEY CAN DO SAFETY ESCORTS SO THAT THERE ARE SAFETY ESCORTS DOWNTOWN AREA AND SURROUNDING AREA. IT WOULD BE GOOD IF COUNCIL WOULD ALSO WORK AND STUDY THEIR WORK WITH THE D.B.A. AND BERKELEY CITY OF COMMERCE AND OTHER ORGANIZATIONS SO WE CAN SEE THE MODEL HERE -- CONTRIBUTING SO THAT WE HAVE A SACRED ENVIRONMENT FOR BOTH TIME NIGHTTIME ACTIVITY.

>> MAYOR A. ISHII: THANK YOU. THANKS, CAROL.

>> PUBLIC SPEAKER: AS MUCH AS I HATE TO BE REDUNDANT,

>> MAYOR A. ISHII: ARE YOU SPEAKING TO AN ITEM HERE?

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>> PUBLIC SPEAKER: I AM SPEAKING TO ITEM -- I'M THINKING ABOUT THE -- AND GAZA RIGHT NOW AND THE BOMBS COMING DOWN AND WATCHING CHILDREN STARVING TO DEATH ON THE STREETS. WHAT KIND OF NIGHTLIFE IS THAT? THE CONNECTION BETWEEN LIFE AND DEATH IS A VERY -- SO MUCH WATCHING EACH OTHER DIE EVERY DAY. STARVATION. THEY ARE STARVING TO DEATH OVER THERE. WHAT KIND OF NIGHTLIFE IS THAT? THERE IS NO NIGHTLIFE. IT DOESN'T MAKE ANY SENSE. SO WHY? I DON'T KNOW. HE JUST SEEMS REALLY, A REAL SHAME TO VOTE FOR NIGHTLIFE -- BUT IT BREAKS MY HEART. THAT'S ALL. THANK YOU.

>> MAYOR A. ISHII: THANK YOU, RUSSELL. NEXT SPEAKER?

>> PUBLIC SPEAKER: HELLO. I'M HERE AS A PRELAW STUDENT, WHICH HAS BEEN REALLY ROUGH FOR OTHER REASONS. THAT'S MOSTLY SO YOU CAN PUT A FACE TO A NAME AND ON A COUPLE OF THINGS -- IF I CAN TALK NIGHTLIFE COUNCIL -- WILDFIRE MARSHALL. THE LAST FOUR YEARS AFTER BEING STATIONED STATESIDE, I WORK AS BASICALLY SUPERVISOR SUPERVISORS LIKE THIS LAST YEAR ZACH RYAN TOUR, -- SINCE YOU GUYS LIKE TO DO THINGS SMARTER, NOT USUALLY I'M NOT IN THE CITY BECAUSE I WORK ON THE ROAD -- BUT I'M A STUDENT AND I'D LIKE TO PUT MYSELF YOUR SERVICES. SO -- IS THAT THERE STILL ISN'T A -- GOING TO BE THE 20TH CENTURY -- BIRTHDAY IS DECEMBER 16, WHICH IS A MAGICAL DAY, SO I HOPE EVERYBODY -- THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANK YOU. YOU HAVE A COMMENT?

>> PUBLIC SPEAKER: YES, PLEASE. I WANT TO THANK YOU FOR YOUR

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SMILES THERE. IT'S BEEN QUITE THE EVENING, AND EACH OF YOU. I WOULD LIKE TO EMPHASIZE WHAT CAROL SAID. I THINK I MENTIONED -- SAFETY MATTERS TO ME AND NO ONE FELT SAFE EVERYONE ISN'T SAFE KIND TOGETHER IS CHALLENGING TO BE SURE HOWEVER, AS AN ELDER WOMAN, DISABLED, WHO SPENT AGAIN EIGHT HOURS TODAY ATTENDING AN ELDER DISABLED WOMAN, I KNOW TOUGH TO DEAL WITH US. MY BRAIN ISN'T AS SMART AS IT USED TO BE. HOW WE TREAT OUR CHILDREN AND HOW WE TREAT OUR ELDERS REALLY MATTERED. HOW WE TREAT THE MOST VULNERABLE REALLY MATTER. OF GOD, I NEVER EXPECTED TO BECOME DISABLED. I WAS HELPING EVERYONE. ANYWAY, THANK YOU AND I SEE YOU --

>> MAYOR A. ISHII: I WAS JUST GOING TO ASK YOU IF YOU WERE SPEAKING TO A SPECIFIC ITEM?

>> PUBLIC SPEAKER: AGAIN, MY BRAIN. THE TRACKING, THE READING, THE NUMBERS, THE WORDS. I'M EMPHASIZING SAFETY. THAT THERE. AND I'M EMPHASIZING CARE AND SHARE BECAUSE THERE'S TOO MANY PEOPLE THAT NEED HELP AND THERE'S MORE THAN ENOUGH PEOPLE THAT COULD. YOU WOULD JUST DO IT. SO THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANK YOU. AND I KNOW, MARIA, YOU ARE ATTENDING THE FF MEETINGS.

>> PUBLIC SPEAKER: GOD, I ATTEND EVERY MEETING THAT THEY WILL LET ME. --

>> PUBLIC SPEAKER: SO I'M TALKING ABOUT ENERGY, TALKING ABOUT

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THE NIGHT OUT. THERE'S NO FUEL OR ELECTRICITY IN GAZA. PEOPLE ARE STARVING BECAUSE THEY CAN'T SINCE THEY DON'T HAVE ENERGY, THEY ARE RESORTING TO BURNING THEIR CLOTHES AND WHATEVER THEY CAN TO CREATE FIRE, TO COOK, AND IT'S JUST SO SAD THAT THE CITY OF BERKELEY, AS I'VE SAID BEFORE IN THE PAST AND SAY IT ON TOPICS, SO DON'T TRY TO INTERRUPT ME. WE ARE TALKING ABOUT ENERGY AND NIGHTS OUT. PEOPLE IN GAZA DON'T HAVE THE ENERGY AND THEY DON'T HAVE A CHANCE TO HAVE A NIGHT OUT. CHILDREN ARE BEING BORN AND STARVING TO DEATH. INFANTS ARE STARVING TO DEATH. I KNOW SOME OF YOUR CHILDREN, AUNTS UNCLES CHILDREN IN YOUR LIFE. IT'S JUST LIKE, EVEN FREAKING 47 IS ACKNOWLEDGING THE STARVATION. YOU KNOW, THAT'S INTERESTING, AND FINALLY. BUT IT'S JUST SAD THAT, YOU KNOW, THEY ARE USING STARVATION AS A WEAPON OF WAR AND OUR BERKELEY CITY COUNCIL ISN'T CARING ABOUT HUMANITY EXCEPT FOR, I DON'T KNOW, THEMSELVES MAY BE. THEY ARE NOT CARING ABOUT THE COMMUNITY AT LARGE LIKE INTERRUPTING AND FORCING ENCAMPMENTS TO LEAVE AND ALL THESE THINGS. SO I KNOW MY TIME IS UP BUT I'M GOING TO STOP IN ONE SECOND.

>> MAYOR A. ISHII: I'M SORRY, BUT YOUR TIME IS UP. DO WE HAVE ANY PUBLIC COMMENTS ONLINE?

>> PUBLIC SPEAKER: THANK YOU VERY MUCH AND FREE PALESTINE.

>> FREE PALESTINE!

>> PUBLIC SPEAKER: APPRECIATE IF YOU CAN START MY TIME OVER, BUT

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YEAH, THIS IS KIERON. I'M SPEAKING AS A BERKELEY NATIVE AND FORMER CITY STAFFER WHO HELPED -- I STRONGLY SUPPORT COUNCILMEMBER TAPLIN'S PROPOSAL FOR NIGHTLIFE COUNCIL, WHICH IS ITEM 24. YOU KNOW, WE MAKE SERIOUS PROGRESS EXPANDING BUSINESS HOURS, LEGALIZING LIVE ENTERTAINMENT AND IN ONE SPANNED DISTRICTS AND STREAMLINING PERMITS AND EVEN OUR POLICE DEPARTMENT ARE IN ALIGNMENT WITH SOME OF THE PARTNERSHIP PURCHASE THAT BALANCE WITH VIBRANCY, SAFETY, AS WELL AS SMART TECHNOLOGY. YOU KNOW, WITH CAL JOINING THE -- WILL BE WELCOMING MANY VISITORS. GET A LOT OF POSITIVE NATIONAL ATTENTION WITH THE ESPN GAME DAY. I WANT TO BE A CITY THAT HAS CIGAR LOUNGES AND THAT'S LET'S TRY TO ACTIVATE HIS PLAZAS AND ALL THESE OTHER OPPORTUNITIES WITH MUSIC AND FOR EVENING ART AND CONTINUE TO INVEST IN OUR AND STRUCTURE THAT SUPPORTS COMMUNAL, VIBRANT DISTRICTS. PROUD OF THE PROGRESS. NOT JUST ABOUT FUN, BUT IT'S A SERIOUS ECONOMIC DRIVER NATIONWIDE. GENERATES BILLIONS OF DOLLARS AND WILL BE A GREAT OPPORTUNITY FOR SOME OF OUR BUSINESSES TO TAKE ADVANTAGE OF THIS. REALLY APPRECIATE IT AND THANK YOU.

>> MAYOR A. ISHII: THANKS, KIERON.

>> CITY CLERK: LAST SPEAKER'S BETH ROSSNER.

>> PUBLIC SPEAKER: GOOD EVENING. THIS BETH ROSSNER ON BEHALF OF THE BERKELEY CHAMBER OF COMMERCE TO SHARE OUR STRONG SUPPORT AS

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WELL FOR ITEM NUMBER 24, THE CREATION OF A NIGHTLIFE COUNCIL. OUR BARS, RESTAURANTS, PERFORMING ARTS VENUES, AND LATE-NIGHT WITNESSES OVER BIG PART OF WHAT MAKES THIS CITY UNIQUE. NIGHTLIFE COUNCIL WILL BRING THE CITY TOGETHER. CITY STAFF, ARTISTS, AND COMMUNITY MEMBERS TO HELP SHAPE POLICIES THAT NIGHTTIME ACTIVITY, IMPROVE PUBLIC SAFETY, AND KEEP OUR COMMERCIAL DISTRICTS WELCOMING AFTER DARK FOR OTHER CITIES HAVE DONE THIS AS WELL AND BERKELEY HAS A CHANCE HERE TO BUILD SOMETHING OF VALUE WHILE HELPING THESE BUSINESSES CONTINUE TO THRIVE. THANK YOU, COUNCILMEMBER TAPLIN, FOR YOUR LEADERSHIP ON THIS, AND THANK YOU ALL.

>> MAYOR A. ISHII: THANK YOU. THAT WAS THE LAST PUBLIC COMMENT, YOU SAID?

>> CITY CLERK: YES.

>> MAYOR A. ISHII: MOVING FORWARD. SO DO WE MAKE THE MOTION?

>> CITY CLERK: [INDISCERNIBLE]

>> MAYOR A. ISHII: I THINK IS COUNCILMEMBER BARTLETT STILL HERE ONLINE?

>> CITY CLERK: YES.

>> B. BARTLETT: YES.

>> CITY CLERK: CALLING THE ROLL ON THE CONSENT CALENDAR. [ROLL CALL] VERY GOOD. THANK YOU, EVERYONE. LET'S SEE WE CAN MAKE IT THROUGH.

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>> CITY CLERK: TAKE A FIVE BREAK? [INDISCERNIBLE] TECHNOLOGY WORK BUT WE CAN TRY IT OUT AND SEE IF IT WORKS OR NOT.

>> MAYOR A. ISHII: OKAY. WE'RE GOING TO TRY SOMETHING OUT, FOLKS. WE'LL TAKE A FIVE MINUTE BREAK.

>> RECORDING STOPPED. [BREAK]

>> RECORDING IN PROGRESS.

>> MAYOR A. ISHII: OKAY. ALL RIGHT, FOLKS. SORRY ABOUT THAT. I THINK THAT WE ARE READY TO MOVE FORWARD. WE ARE GOING TO HAVE -- SORRY I DON'T HAVE -- WE MOVING FORWARD TO THE NEXT ITEM. I AM GOING TO PASS IT OVER TO JORDAN AS I PULL UP THE AGENDA AGAIN.

>> JORDAN KLEIN: THANK YOU, MAYOR, AND COUNCIL. I AM JORDAN KLEIN, THE DIRECTOR OF -- REGULATIONS ON DORM UNITS AND PRESENTING -- THE SLIDES.

>> MAYOR A. ISHII: THANK YOU. JUST TO CLARIFY, FOLKS, WE HAD A CONVERSATION EARLIER ABOUT NOT TALKING ABOUT AMENDMENTS TO TITLE 21. WE ARE JUST TALKING ABOUT AMENDMENTS TO TITLE 23. THE PRESENTATION, ALTHOUGH IT MAY CONTAIN REFERENCE TO THAT, WE ARE ALSO NOT GOING TO TAKE ANY QUESTIONS ON THAT OR TAKE ANY ACTION ON THAT AS WELL. OKAY. THANK YOU.

>> THANK YOU, MAYOR ISHII, AND MEMBERS OF THE CITY COUNCIL. MY NAME IS BRANKA TATAREVIC. TONIGHT I AM PRESENTING -- NEXT SLIDE, PLEASE. THE PLANNING COMMISSION REVIEWED THE ITEM IN MARCH AND THE PLANNING COMMISSION REVIEWED THE ITEM IN SPRING AND SUMMER

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AND IN MARCH THE COMMISSION REVIEWED THE CITY'S LETTER AND STATE LAW CHANGES AND CONSIDERED AND MANAGE CITY AMENDMENTS IN JUNE AND JULY. NEXT SLIDE, PLEASE. URBAN UNITS -- REGARDING THE PROPOSED AMENDMENTS TITLE 23, THE MOST STABLE CHANGES SINGLE IMPACT. SINGLE-FAMILY DWELLINGS MAY NOW HAVE -- MULTIFAMILY LOTS MAY ADD UP TO EIGHT -- EQUAL TO 35 -- CONSISTENT WITH STATE LAWS. NEXT SLIDE, PLEASE. THE REMAINING COMPLIANCE AMENDMENTS -- UPDATING STATE CODE CITATIONS -- NEXT SLIDE, PLEASE. BEYOND COMPLIANCE, THE COMMISSION PROPOSED CORE INCENTIVES THAT ENCOURAGED A.D.U. -- REGARDLESS OF BEDROOM COUNT. REMOVING FRONT SETBACK AND BUILDING SEPARATION SECTIONS FOR ALL A.D.U.'S AND ALLOWING -- CITYWIDE. NEXT SLIDE, PLEASE. FINALLY, STAFF RECOMMENDS THAT THE CITY COUNCIL HOLD A PUBLIC HEARING AND ADOPT A FIRST READING OF THE ORDINANCE TO UPDATE A.D.U. REGULATION IN TITLE 23 FOR THE INCENTIVE LAW AND PROVIDE ADDITIONAL RECOMMENDATION FOR THE PLANNING COMMISSION. THAT CONCLUDES MY PRESENTATION. THANK YOU AND I'M AVAILABLE FOR QUESTIONS.

>> MAYOR A. ISHII: OKAY. THAT WAS A COMPLETE PRESENTATION. COUNCILMEMBERS, DOES ANYONE HAVE CLARIFYING QUESTIONS? GO AHEAD, COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANK YOU, MAYOR ISHII. WE PROCEED STAFFS PRESENTATION ON WHAT'S CHANGED. OBVIOUSLY, WILL HAVE SOME DISCUSSION ON POTENTIAL AMENDMENT LATER TO SHARE. WAS WONDERING

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IF CHIEF -- ANSWER QUESTIONS. [INDISCERNIBLE] ABOUT BUYER'S PERCEPTION GIVEN FIRE DANGERS IN THE HILLS JUST GIVEN THEIR PERCEPTION OF WHAT WE ARE OBLIGATED TO DO --

>> IF THE CHIEF CAN JUMP ON, THAT WOULD BE GREAT. I'VE HAD MANY CONVERSATIONS WITH CHIEFEST BREAK OVER THE YEARS. IN GENERAL, THE FIRE DEPARTMENT NOTES AS WAS ILLUSTRATED IN THE RECENT EVACUATION TIME STUDY PUBLISHED EARLIER THIS MONTH THAT EVEN WITH EXISTING BUILDOUT OF THE HILLSIDE OVERLAY DURING A WILDFIRE EMERGENCY THE EVACUATION TIME IS TO THE POINT WHERE IT COULD LEAD TO LOSS OF LIFE. BASED ON THAT, FIRE DEPARTMENTS POSITION IS THE CITY SHOULD TAKE EFFORTS TO DO WHAT IS WITHIN ITS POWER TO LIMIT ANY NEW GROWTH WITHIN THE VERY HIGH FIRE HAZARD SEVERITY ZONE AND OTHER HIGH-RISK SEVERITY AREAS. ACKNOWLEDGING THAT THERE ARE LIMITS GIVEN STATE LAW TO THE CITY'S DISCRETION OVER THIS ISSUE, THE EVACUATION STEP STUDY DID RECOMMEND THAT THE CITY CONSIDER ESTABLISHING SEPARATE MORE RESTRICTED DEVELOPMENT STANDARD WITH A.D.U.'S WITHIN THE HILLSIDE OVERLAY, AND CHIEF SPRAGUE HAS, IN FACT, EXPRESSED SUPPORT FOR TAKING THAT ACTION TO ME.

>> I CAN JUST ALSO GIVE -- THE CHIEF WILL BE HERE MOMENTARILY SO I'LL JUST ADVISEE WHEN HE JUMPS ON.

>> I WILL SAY I KNOW THERE ARE A LOT OF CONVERSATIONS ABOUT THIS THROUGH DELIBERATION. THAT QUESTION, THAT'S ON THE TABLE FROM

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STAFF AS WE GO THROUGH THAT.

>> MAYOR A. ISHII: THANK YOU. DOES ANYONE ELSE HAVE ANY CLARIFYING QUESTIONS BEFORE WE MOVE FORWARD? GREAT. LET'S MOVE ON TO PUBLIC COMMENT. ANY PUBLIC COMMENT ON THIS ITEM? THIS IS ITEM 28. AGAIN, WE ARE JUST TALKING ABOUT AMENDMENTS TO ITEM 23. IF YOU HAVE COMMENTS, PLEASE COME FORWARD. OKAY. COME ON UP.

>> PUBLIC SPEAKER: THANK YOU. I FEEL LIKE IT'S GROUNDHOG DAY. MY NAME IS DEBBIE SAMPSON, CHAIR OF THE A.D.A. TASK FORCE. WE WANT TO BE CLEAR WE SUPPORT THOSE AMENDMENTS TO CHAPTER 23 PLUS AN ADDITIONAL AMENDMENT TO CLARIFY THAT NEW CONSTRUCTION INCLUDES DETACHED AND ATTACHED A.D.U.'S. WE DON'T SUPPORT MR. BLACKABY SUBMITS. WE UNDERSTAND THE FIRE CONCERN, BUT WHEN WE LOOK AT THOSE AMENDMENTS THAT REDUCE THE SIZE BY 200 FT.^{2} AND THE HEIGHT BY 2 FEET, AND IT'S NOT APPARENT TO US HOW THAT'S GOING TO REDUCE THE POPULATION IN THE HILLSIDE DISTRICT. BERKELEY STILL ALLOWS SINGLE-FAMILY HOMES TO BE BUILT, LARGE-SIZE IN THE HILLSIDE DISTRICT. SO THAT POLICY SEEMS VERY INCONSISTENT WITH THE POLICY TO ADOPT THE MINIMUM STANDARDS FOR A.D.U.'S. WE APPRECIATE THAT THE PROPOSED AMENDMENTS ARE ALIGNED WITH STATE LAW, BUT WE DON'T SEE THE CONNECTION TO REDUCING OUR RISKS OR EVACUATION TIME. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: HI. GOOD EVENING. I JUST WANTED TO SWING BY

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AND SPEAK ON BEHALF OF MY FELLOW A.D.U. DWELLERS. TECHNICALLY, THE UNIT I LIVE IN IS NOT A A.D.U.. IT'S AN ATTACHED COTTAGE ASSOCIATE IN THE BACKYARD OF A MUCH LARGER CONDO BUILDING, BUT I TELL PEOPLE IS A A.D.U.. THAT IS THE ONLY HOME I WAS ABLE TO PURCHASE WHEN I BECAME A HOMEOWNER IN BERKELEY BECAUSE EVERYTHING ELSE WAS WELL OUT OF MY PRICE RANGE. I JUST WANTED TO SAY THAT AS A MILLENNIAL HOMEOWNER, I WOULD LOVE TO SEE MORE OF MY FELLOW MILLENNIAL'S PURCHASE HOMES IN BERKELEY. I THINK THIS IS A WONDERFUL STEP FORWARD TO CREATING NEW OPPORTUNITIES FOR HOMEOWNERSHIP AMONG YOUNGER AND LESS RESOURCED HOMEBUYERS. I WOULD JUST LIKE TO RECOMMEND THAT IT WOULD BE GREAT TO MODIFY THE ORDINANCE TO SHORTEN THE NOTIFICATION PERIOD THAT'S NECESSARILY FOR CURRENT TENANTS IN A.D.U.S. IS CURRENTLY LISTED AS ONE YEAR IN THE ORDINANCE AND I THINK THAT SHOULD BE BROUGHT DOWN TO THREE MONTHS IN ALIGNMENT WITH -- THAT WOULD BE A GREAT WAY TO INCREASE THE OPPORTUNITIES FOR YOUNG PEOPLE TO BUY STARTER HOMES LIKE THE ONE I AM PROUD TO LIVE IN. I'M JUST REALLY HAPPY THAT THE COUNCIL IS TAKING THIS UP AND I HOPE THAT IT PASSES. THANK YOU SO MUCH.

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: I'M REVIEWING A SUPPLEMENTAL BROUGHT FORWARD BY COUNCILMEMBER --

>> MAYOR A. ISHII: CAROL, JUST SO YOU KNOW WE ARE NOT TALKING

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ABOUT THAT THIS EVENING.

>> PUBLIC SPEAKER: OH, SO --

>> MAYOR A. ISHII: WE ARE NOT TALKING ABOUT EITHER OF THE SUPPLEMENTS FROM COUNCILMEMBERS TREGUB, -- I'M SORRY, BARTLETT. WE ARE ONLY TALKING ABOUT THE SUPPLEMENTS FROM COUNCILMEMBERS KESARWANI --

>> PUBLIC SPEAKER: THIS IS COUNCILMEMBER BLACKABY'S ITEM RAISED?

>> MAYOR A. ISHII: YES. WE ARE TALKING SPECIFICALLY ABOUT AMENDMENTS TO TITLE 23.

>> PUBLIC SPEAKER: OKAY. I APOLOGIZE.

>> MAYOR A. ISHII: NO WORRIES.

>> PUBLIC SPEAKER: -- SUPPORT ANYTHING THAT KEEPS BERKELEY COMMUNITY MEMBERS IN BERKELEY.

>> MAYOR A. ISHII: SURE. EXTRA -- TO SAY YOUR LAST NAME SOMETIMES. ANYONE ONLINE?

>> CITY CLERK: WE HAVE A FEW HANDS RAISED. THREE HANDS RAISED CURRENTLY. FIRST IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> PUBLIC SPEAKER: I SAW ON THE SLIDE YOU'RE GOING TO ELIMINATE THE DISTANCE BETWEEN A DWELLING, SO I DON'T THINK THAT'S A GOOD IDEA. THAT'S A FIRE HAZARD. THERE'S NO DEFENSIBLE SPACE. IT DIDN'T SEEM LIKE PEOPLE CARE ABOUT DEFENSIBLE SPACE. IN THE FLATLANDS, BECAUSE IF YOU PUT ALL THESE DWELLINGS ON, YOU KNOW, A PARCEL, YOU KNOW, THERE'S TREES PROBABLY BEING ELIMINATED. NOT

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GOOD FOR THE PLANET. AND IT'S NOT GOOD IN CASE OF A FIRE. THE FIRE DANGER IS HIGH, JUST AS HIGH IN THE FLATS, I BELIEVE, AS IT IS IN THE HILLS. IT'S JUST A DIFFERENT SET OF CIRCUMSTANCES. ESPECIALLY WHEN WE HAVE COMBUSTIBLE MATERIALS THAT COMPANIES SUCH AS BEIR AND WHATEVER ELSE IS DOWN THERE IN THE INDUSTRIAL SECTIONS OF BERKELEY IN THE FLATLANDS. WE NEED DEFENSIBLE SPACE. THANK YOU. FRESE PALESTINE. -- FREE PALESTINE.

>> MAYOR A. ISHII: THANK YOU. AND I HEARD THAT CHIEF SPRAGUE IS ON THE LINE TO ANSWER THAT QUESTION.

>> CHIEF, I KNOW YOU'RE IN THE MIDDLE OF DEALING WITH THE SCENARIO. OUR QUESTION WAS THE FIRE RESPONSE OR PERCEPTION OF WHAT THE RECOMMENDED A.D.U. CHANGES ARE GIVEN FIRE CONCERN.

>> THANK YOU. CAN YOU HEAR ME?

>> YEAH.

>> FIRE POSITION REMAINS CLEAR AND CONSISTENT WITH FIRE COMMENTS. WE BELIEVE SHOULD BE LIMITING ELEMENT AGAINST POPULATION AT ALL DENSITIES IN THE HILLS AND THE FIRE SEVERITY HAZARD ZONE IN THE OVERLAY. THESE AREAS ARE AT HIGH RISK FOR FIRE, ESPECIALLY THOSE DRIVEN BY HIGH WINDS. THAT POSES A REAL THREAT TO LIFE SAFETY. THERE'S FINDINGS CONFIRM WHAT WE LONG UNDERSTOOD FROM REAL-LIFE EXPERIENCE INCLUDING IN 1991 BY ADDING MORE PEOPLE TO THESE AREAS. YOU CAN INCREASE THE TIME IT TAKES US TO EVACUATE THEM AND IT RAISES THE REAL RISK THAT SOME

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RESIDENTS MAY NOT MAKE IT OUT. SO I THINK FURTHER, THE LARGER WE A.D.U.S TO BE, THE MORE PEOPLE THEY ARE GOING TO ACCOMMODATE. THE MORE PEOPLE THEY ACCOMMODATE, THE MORE COMPLICATED THE EVACUATION COMES IN THE LONGER IT WILL TAKE TO MOVE EVERYONE TO SAFETY, ESPECIALLY THOSE THAT NEED MORE TIME TO LEAVE. IN PAST WIND DRIVEN FIRES INCLUDING IN 1991, WE HAVE SEEN THE CONSEQUENT IS OF HOW THESE FIRE OUTPACES EVACUATION PHARAOH IT DIVERTS OUR ATTENTION FROM FIREFIGHTING TO EVACUATION AND, UNFORTUNATELY, PEOPLE ARE OVERCOME BY SMOKE, HEAT. THEORIES THAT ARE NOT -- THESE ARE NOT THEORETICAL RISKS. WE'VE SEEN IT HAPPEN OVER AND OVER AGAIN. YES IT'S -- I STAY CONSISTENT WITH MY PAST COMMENTS THAT WE SHOULD BE ADOPTING THE MINIMUM SIZE ALLOWANCES PERMITTED BY ACD WITHIN THE HILLSIDE OVERLAY AND WE SHOULD BE TAKING STEPS TO SEEK STRONGER LOCAL EXCEPTION THAT ALLOWS MORE STRICT DEVELOPMENT IN THE HILLSIDE OVERLAY. I THINK OUR POSITION IS LIMITING DEVELOPMENT GIVES US A FIGHTING CHANCE TO NOT ONLY EVACUATE PEOPLE THAT ARE ALREADY LIVING IN THE HILLSIDE OVERLAY, BUT ALSO TO FOCUS OUR RESOURCES ON SLOWING OR POTENTIALLY STOPPING THE FIRE'S ADVANCE. HAPPY TO ANSWER ANY MORE SPECIFIC QUESTIONS IF THERE ARE.

>> MAYOR A. ISHII: THANKS, CHIEF. I THINK COUNCILMEMBER HUMBERT HAS A QUESTION FOR YOU.

>> M. HUMBERT: THANK YOU, CHIEF. FOLLOWING UP ON AN EMAIL

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EXCHANGE YOU AND I HAD EARLIER TODAY. IT RELATES TO THE DIFFERENCE BETWEEN IN THE HILLSIDE OVERLAY A A.D.U. THAT'S 15 FEET HIGH OR A A.D.U. THAT'S 20 FEET HIGH. MY QUESTION IS DOES THAT REALLY MAKE A DIFFERENCE IN FIRE ACCESS?

>> CHIEF SPRAGUE: ASSUMING THAT THE A.D.U. WE'RE TALKING ABOUT IS THE ONE THAT'S TRIGGERING CHAPTER 7 A. OUR PRIMARY CONCERN IS ACCESS TO ELEVATED WINDOWS IN THE ROOF VIA GROUND LADDERS. PRIMARY CONCERN IS HAVING SPACE ADJACENT TO THAT STRUCTURE SO THAT WE CAN POSITION A GROUND MATTER AND HAVE AN APPROPRIATE CLIMBING LETTER TO REACH THE ROOF. AS LONG AS THE INCREASED HEIGHT DOES NOT ALLOW FOR PROMOTE ADDITIONAL OCCUPANTS INSIDE THE STRUCTURE THEN THERE WOULD BE AT 18 FEET, I DON'T SEE AN ISSUE.

>> 18 VERSUS 20. I WANT TO RECALL ONE THING THAT COUNCILMEMBER ROBINSON MENTIONED I THINK LAST TIME THIS CAME AROUND AND IT'S THAT IF AN A.D.U. ASSUMING THAT THE VOLUMES AND SQUARE FOOTAGE ARE THE SAME, ASSUMING EVERYTHING DOES EQUAL AND A.D.U. THAT'S 20 FEET HIGH EQUAL VOLUME WITH AN A.D.U. -- IT MAY ACTUALLY HAVE A SMALLER FOOTPRINT AND THAT MIGHT BE MARGINALLY. IS THAT ESSENTIALLY CORRECT?

>> CHIEF SPRAGUE: I THINK THAT MAKES SENSE TO ME.

>> THANK YOU, CHIEF. REALLY APPRECIATE IT. THANK YOU FOR YOUR SERVICE ON THIS ISSUE.

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>> MAYOR A. ISHII: COUNCILMEMBER BLACKABY, DID YOU HAVE COMMENTS?

>> B. BLACKABY: GIVEN THAT WE CAN'T MAKE ANY REQUIREMENTS WITH RESPECT TO PARKING AND CAN'T MAKE ANY REQUIREMENTS WITH RESPECT TO SETBACKS, WE ARE TALKING ABOUT SQUARE FOOTAGE, WE ARE TALKING ABOUT HEIGHT. THE THING WE HAVEN'T TALKED ABOUT IN YOUR PERSPECTIVE IS ROOFTOP -- IS THERE ANYTHING ABOUT THAT FUTURE ALSO OF INTEREST?

>> CHIEF SPRAGUE: I THINK AGAIN IT WOULD BE IN MY MIND DEPENDENT ON IF THE STRUCTURE BELOW IT IS RELEVANT TO CHAPTER 7 A. IF IT'S NOT A CHAPTER 7 A COMPLIANT STRUCTURE AND WE ARE PUTTING COMBUSTIBLE MATERIALS ON A ROOF DECK, I THINK WE ARE ESSENTIALLY CREATING VOIDING THE CLASS CAPITAL A ROOF THAT'S UNDERNEATH IT, WHICH I THINK WOULD NOT BE SMART. I DON'T THINK IT'S A HUGE DEAL, BUT IT WOULD INCREASE THE LIKELIHOOD THAT ADDITIONAL STRUCTURES WOULD IGNITE EMBERS FALLING FROM ROOF DECK AND COMBUSTIBLE BURNING STRUCTURES. IT'S SIMILAR TO THE WOOD SHAKE ROOF SITUATION THAT WE WOULD BE CREATING.

>> THANKS, MAYOR. THANK YOU, CHIEF, FOR BEING HERE.

>> MAYOR A. ISHII: COUNCILMEMBER O'KEEFE -- OR IS IT COUNCILMEMBER TREGUB? YOU WERE NUMBER TWO. THANK YOU. DID YOU HAVE SOMETHING, COUNCILMEMBER TREGUB?

>> MAYOR A. ISHII: I GUESS I'M NUMBER ONE IN THE HOUSE. YEAH. I

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UNDERSTAND THIS IS GOING TO MAYBE COME UP LATER AS WE DISCUSSED SOME OF THE SUPPLEMENT THAT WE CAN DISCUSS. BUT I WANT TO UNDERSTAND FOR THE -- SO IN TABLE 23 306-1, THERE IS THAT THIRD ROW EXISTING MULTIFAMILY DWELLING. I KNOW WE ARE GOING TO TALK ABOUT POTENTIALLY DIFFERENTIATING AROUND THOSE ARE H ZONE AND OTHERS. I THINK THIS IS A QUESTION FOR STAFF, ALTHOUGH I'LL LATER HAVE A QUESTION FOR COUNCILMEMBER BLACKABY. I WANT TO UNDERSTAND FROM STAFF, DO WE -- HOW MANY EXISTING CONDITION LOTS DO WE HAVE IN THE HILLSIDE OVERLAY THAT ARE GREATER THAN SINGLE FAMILIES SINCE THAT IS THE DESIGNATED ZONING?

>> SORRY, YOU'RE ASKING HOW MANY LOTS IN THE HILLSIDE OVERLAY THAT ARE ZONED OTHER THAN R1H THAT ARE ZONED DIFFERENTLY?

>> I. TREGUB: YES, I'M GETTING IT HOW APPLICABLE -- I KNOW WE'RE GOING TO TALK ABOUT POTENTIALLY DIFFERENTIATING HILLS OVERLAY FROM NOT HILLS OVERLAY AND I'M CURIOUS HOW RELEVANT IS THAT?

>> MAYOR A. ISHII: ARE YOU ASKING IF WE HAVE MULTIFAMILY DEVELOPMENT IN HILLSIDE OVERLAY?

>> YES, THERE ARE A LITTLE BIT OF OUR TEAM AND OUR THREE IN THE HILLSIDE OVERLAY. MAYBE A LITTLE BIT ON THE SOUTH SIDE OR EAST END OF SOUTHSIDE. BUT IT'S FRONT ROW. WE DON'T KNOW HOW MANY PARCELS OFF THE TOP OF OUR HEAD. WE CAN RESEARCH THAT, BUT I DON'T THINK --

>> I. TREGUB: THIS ANSWERS MY QUESTION. THANK YOU.

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>> MAYOR A. ISHII: OKAY. WE STILL HAVE SOME COMMENTS I THINK ONLINE.

>> OH, THAT'S RIGHT. NEXT UP IS ALFRED TWU.

>> PUBLIC SPEAKER: THANK YOU. JUST WANT TO THANK YOU FOR TAKING OF THIS ITEM FROM THE PLANNING COMMISSION. I THINK YOU ADDRESSED A LOT OF THE PRIOR RISK CONCERNS. I THINK ONE THING THE CITY CAN LOOK AT IS THE BUILDING CODE STANDARDS. ANY NEW BUILDING WOULD HAVE TO BE BUILT TO FIRE STANDARDS. ONE OPTION MAY BE LOOKING INTO RENOVATIONS AND REQUIRING HIGHER FIRE SAFETY STANDARD AS WELL. [INDISCERNIBLE]

>> CITY CLERK: OKAY. NEXT UP IS KELLY HAMMARGREN.

>> PUBLIC SPEAKER: OKAY. PLEASE TELL ME IF YOU CAN'T HEAR ME BECAUSE IT SOUNDS VERY BAD TONIGHT. OKAY. THERE ARE THREE THINGS THAT ARE NEVER CONSIDERED IN OUR ZONING AND ALSO WITH THIS IN THE A.D.U.S. WE ARE NOT LOOKING AT WATER RUNOFF AS WE COVER THE LAND WITH MORE HARDSCAPE. WE ARE NOT LOOKING AT THE IMPACT ON ECOSYSTEMS AND HABITAT, CITIES URBAN AREAS STILL IMPORTANT FOR NATURE. AND, OF COURSE, WE ALWAYS ACT AS IF WE ARE THE ONLY SPECIES LIVING ON THIS PLANET. WE ARE NOT LOOKING AT HEAT ISLAND EFFECT. I AM VERY DISAPPOINTED THAT WE ARE GOING TO BE MOVING SETBACKS, SEPARATION OF BUILDINGS BECAUSE ALL THREE OF THESE THINGS ARE IMPACTED SEVERELY BY REMOVING SETBACKS. WE'RE GOING TO HAVE MORE WATER RUNOFF, LESS SPACE FOR NATURE TO LIVE, AND WE

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ARE GOING TO START FEELING THE HEAT ISLAND IN EFFECT. HEAT ISLAND EFFECT IS WHEN WE HAVE ALL THESE HARD SURFACES TO HEAT UP AND THEN ACTUALLY CHANGES MICROCLIMATE. ONE OF THE THINGS THAT'S SO NICE ABOUT BERKELEY IS THE CLIMATE, BUT WE CAN IMPACT THAT WITH HARDSCAPE. THOSE ARE MY COMMENTS. I DON'T KNOW WHERE IS THE CLOCK, SO I DON'T KNOW WHERE I AM ON TIME.

>> CITY CLERK: NEXT UP IS JANIS CHING.

>> PUBLIC SPEAKER: GOOD EVENING. THANK YOU FOR TAKING MY CALL. SOUNDS LIKE YOU'VE ASKED THE FIRE CHIEF TO WEIGH IN ON EVACUATION AND FIRE DANGERS IN THE HILLSIDE OVERLAY, BUT NO ONE HAS ASKED HIM ABOUT FIRED DANGER IN THE REST OF THE CITY. IT SEEMS TO ME THAT EVACUATION PLANS HAVE TO GO SOMEWHERE. IF THE FIRE STARTS COMING DOWN THE HILL AND THERE IS FIRE DANGER AS YOU MOVE DOWN, OTHER AREAS ARE GOING TO BE IMPACTED BY THAT. I WAS VERY SURPRISED TO SEE THAT THE MAX HEIGHT WAS NOW GOING TO BE 25 FEET AND IT SOUNDS LIKE THAT'S GOING TO TAKE AWAY -- IT WAS SUPPOSED TO STEP DOWN TO 20 FEET IS MY UNDERSTANDING AMONG THE BACKYARDS. I DON'T KNOW IF THAT IS STILL IN PLAY, BUT THE OTHER QUESTION IS THE FIRE CHIEF TALKED ABOUT THE APPROPRIATE LATTER ANGLE. THE LATTER ANGLE STILL SEEMS TO APPLY WHETHER YOU ARE IN THE FIRE ZONE OR NOT. IF YOU CAN'T GET THE LETTER AT THE RIGHT ANGLE TO LOOK AT THE TOP OF THE ROOF BECAUSE YOU HAVE NO SETBACKS AND NO BUILDINGS SEPARATION IT'S GOING TO BE A PROBLEM

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NO MATTER WHERE THE HOUSE IS. AND JUST BEING ABLE TO GET PEOPLE OUT IN TIME I'M VERY CONCERNED ABOUT THAT THROUGHOUT THE CITY. THANK YOU.

>> MAYOR A. ISHII: I JUST WANT TO LET FOLKS KNOW THE REASON WE ARE TALKING ABOUT EVACUATION OF THE HILLS IS BECAUSE OF THE RECENT STUDY THAT WAS SPECIFICALLY LOOKING AT THAT AREA. IS NOT TO SAY WE ARE IGNORING THE REST OF THE CITY. WE ARE DEFINITELY AWARE FIRE DANGER IS SOMETHING. THERE CAN BE A FIRE ANYWHERE. OKAY. SO MOVING ON. BUT THAT'S IT FOR OUR PUBLIC COMMENTS? COUNCIL COMMENTS?

>> [INDISCERNIBLE]

>> MADAM MAYOR, GIVEN THAT COUNCILMEMBER BLACKABY AND MYSELF, I THINK COUNCILMEMBER BLACKABY SHOULD PROBABLY GO FIRST. I WAS WONDERING IF WE SHOULD PRESENT OUR SUPPLEMENTALS. I WOULD PRESENT ONE --

>> MAYOR A. ISHII: I THINK IT MAKES SENSE FOR COUNCILMEMBER BLACKABY TO PRESENT AND IF THERE'S A PIECE FROM YOUR SUPPLEMENTAL YOU'D LIKE TO ADD AND PRESENT THAT AS WELL. DO YOU HAVE IT PULLED UP BY CHANCE?

>> I DO. AND I'VE GOT [INDISCERNIBLE]

>> MAYOR A. ISHII: THAT SOUNDS GOOD. THANK YOU.

>> I PROUDLY SUPPORT ANY HOUSING -- TO ME, BEING PRO-HOUSING MEANS BEING FOCUSED ON AFFORDABILITY, ACCESSIBILITY, STABILITY,

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BUT ALSO SAFETY. IN FACT, AS BERKELEY FACES REAL FIRE SAFETY CONCERNS AS WE'VE HEARD FROM THE CHIEF OF STAFF, THEY HAVE HAD ALL OF US, PARTICULARLY THE THOUSANDS OF RESIDENTS WHO RIGHT NOW ARE LIVING ON HIGH AND FIERY HIGH -- VERY HIGH FIRE SAFETY ZONES. WE RECOGNIZE THERE IS MUCH WORK TO DO. THAT'S WHY THANKS TO THE LEADERSHIP OF OUR DEPARTMENT, OUR CITY COUNCIL RECENTLY PASSED -- INITIATIVE TO IMPLEMENT AND CREATE DEFENSIBLE SPACE IN THE FIRST 5 FEET AROUND THEIR HOMES AS WELL AS INCENTIVIZING HOME -- FOCUSED ON PREVENTING FIREFIGHTERS AND PURSUING VEGETATION MANAGEMENT ALONG PUBLIC RIGHTS-OF-WAY. THE FIRE DEPARTMENT RECENTLY COMMISSIONED AN EVACUATION STUDY AND THE RESULTS ARE SOBERING. THE ESTIMATES EVEN JUST THE CURRENT POPULATION LEVEL IN THE HILLS QUOTE EVACUATION TIME ESTIMATES INDICATE THE FAST-MOVING FIRE TO OVERTAKE PEOPLE WHO ARE STILL STUCK IN TRAFFIC. SCENARIO THAT THE STUDY EXAMINED OF MAXIMUM PERMISSIBLE A.D.U. DEVELOPMENT -- FOR THESE REASONS, THE STUDY -- WE ARE ALREADY PEOPLE LIKELY NOT BEING ABLE TO MAKE IT OUT. FOR THESE REASONS, THE CITY RECOMMENDED PROVISIONS IN THE HILLSIDE OVERLAY. THE AMENDMENTS, WHICH I WILL SHOW IN A SECOND PROPOSED, AND I JUST WANT TO THANK MY COSPONSORS MAYOR ISHII, COUNCILMEMBER -- AND MYSELF DO JUST THAT. WE MEET THE STATE STANDARD, BUT -- TO ADDRESS THE FIRE THREAT WHILE CONTINUING TO SUPPORT MORE GENEROUS STANDARDS, WHICH AGAIN SUPPORT OUTSIDE THE

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HILLSIDE OVERLAY ZONE. BUT THIS IS THE BARE MINIMUM. FRANKLY, I WOULD WANT TO DO MORE, BUT A.D.U. LAW, THE STATE LAW HAS TIED OUR HANDS. I WOULD LIKE TO PROPOSE 5 FOOT SETBACKS RATHER THAN 5 FEET TO MATCH THE NEW -- MAKES SENSE IN TERMS OF WHAT WE ARE ASKING HOMEOWNERS IN A HIGH FIRE ZONE. I WOULD LIKE TO AT LEAST PROPOSE OR CONSIDER ON-SITE PARKING -- FIRST RESPONDERS, BUT WE CAN'T DO THAT EITHER. OVER THE PAST FEW YEARS, THE STATE HAS RIGHTFULLY FOCUSED ON KICKSTART NEW PRODUCTION HOUSING AFTER DECADES AND DECADES OF FAILED NEW HOUSING POLICY. THAT'S BEEN INCREDIBLY IMPORTANT AND IT'S BEGAN TO MAKE A DIFFERENCE. IT'S BEGAN TO WORK. AT THE SAME TIME, WE HAVE SEEN AN ESCALATION IN THE NUMBER AND SEVERITY OF DEVASTATING WILDFIRES IMPACTING SMALL AND LARGE COMMUNITIES ACROSS THE STATE AND ACROSS THE COUNTRY. AS A STATE, WE ABSOLUTELY NEED TO KEEP UP THE MOMENTUM OF BUILDING MORE HOUSING. BUT I BELIEVE WE NEED TO FOCUS OUR COLLECTIVE EFFORTS ON BUILDING HOUSING WHERE IT IS SAFE TO DO SO AND GIVE LOCAL JURISDICTIONS SOME ABILITY TO ADAPT TO SPECIFIC LOCAL FIRE HAZARD CONDITIONS. THE SHOULD NOT BE AN EASY EXCUSE -- BUT WE SHOULD ALSO BUILD HOUSING AS A COMMUNITY WITH SAFETY IN MIND. I'M EAGER TO WORK WITH STATE PARTNERS THAT AND. I BELIEVE ARE STILL INSUFFICIENT TO THE THREAT WE FACE IS MUCH WORK TO DO TO BRING HOUSING PRODUCTION AND FIRE SAFETY BETTER BALANCED HERE IN BERKELEY. LET ME SHARE PROPOSED AMENDMENTS WITH MY COLLEAGUES

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AND MYSELF. I WANT TO THANK STAFF FOR THEIR WORK AND SUPPORTIVE HELP AS WE FALL THROUGH THE DIFFERENT PERMUTATIONS OF THIS. ACTUALLY, I'M NOT ON ZOOM BECAUSE I CAN'T -- MY PASSWORD DOESN'T WORK. I'M HAPPY TO BRING UP [INDISCERNIBLE]

>> I'LL ASK THE CLERK. [INDISCERNIBLE]

>> ACTUALLY, THE ON-SITE INTERNET IS NOW WORKING FOR ME. SO WITH THAT IN MIND, TAKE THAT BACK.

>> [INDISCERNIBLE]

>> OKAY. I CAN DO THAT RIGHT NOW ALL RIGHT. THIS GREAT. ALL RIGHT. [INDISCERNIBLE] [LAUGHTER]

>> SO ALL THE SECTIONS IN RED -- SORRY, WE WILL SKIP ALL THAT. STARTING IN SECTION 2, ALL THE SECTIONS IN RED WERE ALREADY IN STAFF REPORT. NO CHANGES. THE ONLY CHANGES WE'VE DONE ARE MARKED IN YELLOW. STAFF DID A LOT OF WORK TO HELP US DEVELOP SOME SPECIFIC FINDINGS THAT LAY THE GROUNDWORK FOR WHY WE ARE PROPOSING DIFFERENT STANDARDS IN HILLSIDE OVERLAY ZONE. AGAIN, NOT GOING TO GO THROUGH THESE IN DETAIL, BUT THEY TALK ABOUT THE EARTHQUAKE AS WELL AS THE FIRE HISTORY TURCO POWER STRUCTURE SEPARATION DISTANCE HERE IN BERKELEY, WHICH IS VERY TIGHT. AND THEN WE TALK ABOUT THE EVACUATION STUDY AND WHAT WE LEARNED FROM THE EVACUATION STUDY AND DENSITY GIVEN THE RISKS. THE FINDINGS IN ALL THESE CONDITIONS NECESSITATE REASONABLE CONDITIONS ON ANY NECESSARY OVERLAY. SO THAT'S THE FINDINGS SECTION. AND IN THE

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TABLE, AGAIN, ALL THE CHANGES IN RED ARE ALREADY IN STAFF REPORT. ARE ADDITIONAL CHANGES IN YELLOW WHERE AGAIN WITHIN EACH OF THE COMPONENTS OF EXISTING MULTIFAMILY DWELLING WE HAVE AN OUTSIDE AND INSIDE MIDDLE SIDE OVERLAY COMPONENT. THE DIFFERENCE HERE IS OUTSIDE THE OVERLAY IT'S A NEW CONSTRUCTION A.D.U.S OF ATTACHED OR DETACHED TYPE WITHIN HILLSIDE OVERLAY IT'S DETACHED. THIS IS NOT FOR EXISTING, BUT NEWLY PROPOSED LINES. OUTSIDE OVERLAYS, TWO -- SECTION 6 ABOUT THE STANDARDS, WE HAVE RETAINED THE EXISTING 50 AND 1000 SQUARE-FOOT STANDARD IN THE HILLSIDE OVERLAY. RATHER THAN ROLL THAT BACK WE SAID LET'S KEEP THAT. THAT'S CURRENT POLICY IN THE CITY OUTSIDE THE HILLSIDE OVERLAY EXPAND AS PROPOSED PLANNING COMMISSION AND STAFF OF 1200. BUILDING HEIGHTS. AGAIN, IT'S 25 FEET ACROSS HILLSIDE AND INSIDE THE HILLSIDE OVERLAY WE HAD A RANGE OF 16-18 FEET AND THERE IS A 25 FOOT LIMIT FOR ATTACHED DEPENDING ON BUILDING -- CHANGES TO BUILDING SEPARATION. AND THEN BEYOND A SOMETHING I TOLD; THIS IS JUST MY OWN. THIS IS NOT ON THE SUPPLEMENTAL. I'M NOT SPEAKING FOR MY SPONSORS. SEPARATELY, MAKE A SEPARATE AMENDMENT ON --

>> MAYOR A. ISHII: SORRY, CAN YOU SCROLL DOWN A LITTLE BIT BECAUSE THE CAPTIONS ARE JUST COVERING THEM. THANK YOU.

>> THIS WAS NOT IN THE SUPPLEMENTAL. THIS WAS DEVELOPED IN CONVERSATION WITH STAFF. THIS IS SOMETHING DEVELOPED TODAY. WOULD BE HAPPY TO CONSIDER THIS SEPARATE FROM THE SUPPLEMENTAL.

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>> MAYOR A. ISHII: APOLOGIES. COUNCILMEMBER TREGUB, DID YOU -- I THINK WE WERE GOING TO LET --

>> THAT'S IT FROM ME.

>> MAYOR A. ISHII: IF YOU WANTED TO ADD, AND THEN WILL GO TO COUNCILMEMBER TREGUB.

>> COUNCILMEMBER, COULD YOU JUST STOP SHARING?

>> YES. STOP SHARING. STOP OVER SHARING.

>> R. KESARWANI: OKAY. THANK YOU VERY MUCH, PLANNING STAFF AND PUBLIC COMMENTERS AND COUNCILMEMBER BLACKABY FOR YOUR PRESENTATION. I JUST WANT TO NOTE THIS IS THE FIRST TIME IN MY MEMORY THERE HAVE BEEN THREE SUPPLEMENTAL REPORTS AND EVERY SINGLE COUNCILMEMBER AND THE MAYOR HAS THROWN THEIR HAT INTO THIS. I LOVE THAT WE ARE SO ENGAGED ON ACCESSORY DWELLING UNITS. CONFIDENT THAT WE WILL LAND VERY WELL TONIGHT. I'VE HAD THREE VERY BRIEF RECOMMENDATIONS. TWO OF WHICH WE ARE GOING TO CONTINUE TO AFTER SOME RECESS BECAUSE THEY RELATE TO TITLE 21 WHICH WE ARE NOT DISCUSSING THIS EVENING. SO THE ONLY REMAINING RECOMMENDATION THAT I DO JUST WANT TO BRIEFLY GO OVER IS RELATED TO THE DEFINITION OF NEW CONSTRUCTION. MY UNDERSTANDING IS UNCLEAR ON WHETHER ACCESSORY WELLING UNITS ON MULTI FAMILY MAY BE EITHER DETACHED OR ATTACHED. STAFF IS RECOMMENDING THAT THE ORDINANCE REFERS NEW CONSTRUCTION A.D.U.S AND FOR THE PURPOSES OF CLARITY AND POSTERITY AND MAKING SURE THAT EVERYBODY IS CLEAR

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ABOUT WHAT NEW CONSTRUCTION MEANS, WE ARE PROPOSING A FOOTNOTE -- FOOTNOTE TO TABLE 23.306-1 THAT WOULD CLARIFY THAT NEW CONSTRUCTION A.D.U.S -- AGAIN, THIS IS IN RELATION TO NEW STATE LAW. IT SAYS YOU CAN DO UP TO EIGHT. WE ARE WANTING TO GIVE CLARITY THAT YOU CAN HAVE THE FLEXIBILITY TO DO THAT, EITHER ATTACHED OR DETACHED FROM THE PRIMARY STRUCTURE OR STRUCTURES AND OR ATTACHED OR DETACHED FROM OTHER ACCESSORY DWELLING UNITS IN ANY CONFIGURATION. MEANING IF YOU HAPPEN TO HAVE SPACE FOR AND THE ALLOWANCE TO DO FOUR A.D.U.S AND YOU WANTED TO ATTACH TWO TO A MULTIUNIT BUILDING, YOU COULD DO THAT AND THEN YOU COULD DO TWO OTHERS ATTACHED. THE SORT OF DO THIS IN ANY CONFIGURATION. THAT'S ALL WE WERE TRYING TO DO THERE. I DO WANT TO ACKNOWLEDGE COUNCILMEMBER BLACKABY FOR POSING DIFFERENCES BETWEEN DETACHED AND ATTACHED HILLSIDE OVERLAY. I WANT TO HEAR FROM MY COLLEAGUES ON THAT AND I'M SURE WE CAN DO THE CLEANUP THAT WOULD BE NECESSARY TO MAKE OUR INTENTIONS CLEAR ONCE WE HAVE A SENSE OF WHERE WE WANT TO LAND ON ALL OF THIS. I WILL PAUSE THERE FOR NOW AND LOOK FORWARD TO HEARING FROM ALL MY COLLEAGUES. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU SO MUCH. I'LL START WITH QUESTIONS. THIS IS FOR COUNCILMEMBER BLACKABY. SO I THINK I NOW UNDERSTAND THIS OR I HAVE MORE CLARITY. BUT I WANTED TO CONFIRM. SO YOU'RE

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SAYING OUTSIDE OF HILLSIDE OVERLAY FOR MULTI FAMILY KEEP EVERYTHING THE SAME WITHIN HILLSIDE OVERLAY THAT EIGHT DETACHED CONSTRUCTION A.D.U.S, WITHOUT THE SPECIFICALLY FOR -- I GUESS THIS COULD GO TO THE COUNCILMEMBER OR STAFF OR BOTH. BUT WE WERE JUST TALKING ABOUT THOSE. MAYBE YOU CAN EXPLAIN BECAUSE WE ARE BUILDING NEW MULTIFAMILY HOUSING UNIT HOUSING IN THE HILLSIDE OVERLAY. WOULD THIS BE APPLICABLE TO EXISTING CONSTRUCTION WOULD THIS BE REQUIRED BY STATE LAW TO BE PROHIBITED?

>> -- MAY OR MAY NOT BE A TON OF NEW DEVELOPMENT. I'VE ALSO JUST REMARK WE CHANGED NOTHING OUT. THERE'S A DISTINCTION BETWEEN INSIDE AND OUTSIDE. ALL THESE INSIDE AND OUTSIDE THE ZONE WERE PREVIOUSLY SUGGESTED CITYWIDE. SO WAS GOOD IF YOU'RE OUTSIDE THE ZONE WAS PROPOSED BY STAFF AND COUNCIL -- IF THAT MAKES SENSE. SO WE DIDN'T TOUCH OR CHANGE ANYTHING OUTSIDE. AND -- DELINEATIONS ON THE OUTSIDE VERSUS WITHIN.

>> YEAH. I'LL JUST SAY FIRST REGARDING COUNCILMEMBER KESARWANI'S PROPOSAL OF THE NEW CONSTRUCTION. I THINK HER FOOTNOTE IS CONSISTENT WITH STAFF'S INTERPRETATION OF THE EXISTING TEXT OF STATE LAW AND THE ORDINANCE AS PROPOSED. WE SEE NO PROBLEM WITH THE ADDITION OF THE MINIMUM IN ORDER TO ELIMINATE ANY AMBIGUITY. THAT SEEMS FINE WITH US. THERE'S ONE GIVEN WITH THE ADDITION OF THAT FOOTNOTE THERE'S ONE SECTION OF THE BLACKABY SUPPLEMENTAL, IF I MAY, WHERE WE WOULD DELETE THE CLAUSE NEW CONSTRUCTION AND

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HAVE IT JUST SAY TO ATTACHED A.D.U.S.

>> THAT'S HERE IN THIS PORTION? I'M SORRY.

>> OH, I'M NOT SURE.

>> MAYOR A. ISHII: DID YOUR QUESTION --

>> I. TREGUB: YEAH. I HAVE I THINK ONE MORE. SO THEN WITHIN THE HILLSIDE OVERLAY, THIS IS GOING FORWARD IT'S TWO DETACHED NEW CONSTRUCTION A.D.U.S. SO ONE, I WANTED TO JUST -- WELL, THE QUESTION FOR STAFF OR MAYBE COUNCILMEMBER BLACKABY IS CAN YOU ADD SOME COLOR ON WHAT IS IT SPECIFIC TO THE DETACHED NATURE OF THE A.D.U. IN THE HILLSIDE OVERLAY ZONE THAT FROM YOUR PERSPECTIVE WOULD LEAD TO HEIGHTENED FIRE SAFETY?

>> THE CONVERSATION BETWEEN DETACHED AND ATTACHED IN HILLSIDE OVERLAY ARE DEEPER CONCERNS.

>> SURE. I THINK WHAT IS PROPOSED IN THE BLACKABY SUPPLEMENTAL MIRRORS STATE LAW, THE MINIMUM REQUIREMENTS, AND THE GOVERNMENT CODE. THE PLANNING COMMISSION RECOMMENDED A MORE PERMISSIVE STANDARD WHERE UP TO EIGHT NEW CONSTRUCTION A.D.U.S EITHER ATTACHED OR DETACHED WERE JUST SLIGHTLY MORE PERMISSIVE THAN WHAT WE WERE OBLIGATED TO ALLOW UNDER STATE LAW.

>> I. TREGUB: I THINK MY QUESTION IS A LITTLE DIFFERENT. IT'S ABOUT THE ATTACHED HORSES DETACHED. IS IT THE FIRE SEPARATION THAT WE'RE CONCERNED? LIKE THE BUILDING TO BUILDING SEPARATION THAT WE'RE CONCERNED ABOUT, WHICH IS WHY WHAT'S PROPOSED IS TO

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DETACHED NEW CONSTRUCTION A.D.U.S SPECIFICALLY? DETACHED?

>> YEAH.

>> I. TREGUB: OKAY. OKAY. AND SO THEN TO COUNCILMEMBER KESARWANI. AND I APPRECIATE THE FOOTNOTE AND I'M CURIOUS IF YOU WOULD BE OPEN TO I GUESS A FOOTNOTE WOULD BE SPECIFIC TO -- IF YOU ARE OPEN TO THE FOOTNOTE ALONG THE NON- HILL OVERLAY AREAS AND KEEPING THEM DETACHED?

>> R. KESARWANI: SO WE DON'T HAVE ANY MOTIONS ON THE FLOOR, BUT LET'S JUST ACKNOWLEDGE THAT IT SEEMS LIKE WE'RE GOING TO LAND ON SOMETHING DIFFERENT FOR THE HILLSIDE OVERLAY ZONE AND IF AND WHEN WE DO I BELIEVE COUNCILMEMBER BLACKABY HAS SORT OF ALREADY ADDRESSED IT BECAUSE HE TOOK OUT THE WORD, THE PHRASE "NEW CONSTRUCTION." SO HE DEFINED IN THE AREA WHERE HE WAS, WHERE HE WANTED TO LIMIT DETACHED IT STANDS EVEN WITH A FOOTNOTE MEANING HE IS SAYING ONLY DETACHED A.D.U.S IN THIS OVERLAY ZONE AND THEN IN OUTSIDE OF THIS OVERLAY ZONE WE KEEP THE PHRASE "NEW CONSTRUCTION" AND WE DEFINED IT TO MEAN ATTACHED OR NOT ATTACHED, IF THAT MAKES SENSE.

>> I. TREGUB: MY COMMENTS WAS I WOULD -- THIS REMINDS ME OF BEING IN THE MIDDLE OF THE MIDDLE HOUSING ORDINANCE DISCUSSION. I FEEL LIKE WE ARE GOING TO FIND A MIDDLE GROUND HERE AND THAT MIGHT BE THAT. SO I JUST WANT TO COMMEND THE AUTHORS OF BOTH SUPPLEMENTALS AND LOOK FORWARD TO SEEING IF THERE CAN BE A

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MOTION THAT SYNTHESIZES THESE TWO PROPOSALS OF WHICH I SUPPORT.

>> MAYOR A. ISHII: OKAY. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I HAVE TWO QUESTIONS FOR COUNCILMEMBER BLACKABY. I WANT TO FOLLOW UP ON SOME OF THE QUESTIONS THAT COUNCILMEMBER TREGUB WAS HINTING ABOUT THE ATTACHED VERSUS DETACHED A.D.U.S. SO THE PREMISE OF THIS IS THAT SEPARATE CONSTRUCTION FROM THE MAIN HOUSE IS MORE DESIRABLE THAN CONSTRUCTION ATTACHED TO THE MAIN HOUSE EVEN IF IT'S 4 FEET AWAY. WHY IS THAT?

>> AGAIN, IT HAS TO DO AS MUCH WITH DENSITY THAN ANYTHING ELSE, RIGHT? WHICH IS TO SAY IT LIMITS THE AMOUNT OF DEVELOPMENT GOING TO HAPPEN ON THE PARCEL, WHICH MEANS FOR PEOPLE.

>> C. LUNAPARRA: BUT A LOT HAS EIGHT DETACHED A.D.U.S, WHAT DOES THAT MEAN FOR DENSITY?

>> BECAUSE A GIVEN PARCEL MAY NOT ACCOMMODATE ALL EIGHT. IT SAYS YOU CAN HAVE UP TO EIGHT, BUT THE PARCEL MAY NOT ACCOMMODATE ALL EIGHT.

>> C. LUNAPARRA: SO BECAUSE PARCELS -- BECAUSE IT'S MORE LIKELY -- A PARCEL IS MORE LIKELY TO FIT THE EIGHT ATTACHED A.D.U.S VERSUS THE EIGHT DETACHED?

>> EIGHT DETACHED ARE UP TO WHATEVER NUMBER CAN FIT ON A PARCEL PROVIDES LESS DENSITY THAN IF THEY WERE ALL ATTACHED IN WHATEVER NUMBER.

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>> C. LUNAPARRA: BECAUSE IT'S LESS LIKELY THAT THEY WILL BE ABLE TO MAX OUT? OKAY. THANK YOU. THAT MAKES MORE SENSE. THE NEXT QUESTION I HAVE IS A CLARIFICATION ABOUT THE BUILDING HEIGHT STANDARDS THAT YOU'RE ADDING. THIS IS THE DECREASE FROM THE CURRENT BUILDING STANDARD HEIGHT, CORRECT?

>> THAT IS.

>> C. LUNAPARRA: WHAT IS THE CURRENT BUILDING HEIGHT STANDARD, DO YOU KNOW?

>> I BELIEVE IT'S 20 FEET.

>> C. LUNAPARRA: 20. THANK YOU. CURRENTLY, THE SIZE OF A.D.U.S IS 1800 FT.^{2}-20,000 FT.^{2}. THOSE ARE MY QUESTIONS. THINKING.

>> MAYOR A. ISHII: COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. THIS ONE IS PRETTY LOUD. I DON'T HAVE ANY QUESTIONS. I HAVE SOME COMMENTS FOR COUNCILMEMBERS BLACKABY AND KESARWANI FOR THEIR SUPPLEMENTS, SUPPLEMENTALS. ONLY A SMALL PART OF KESARWANI'S REMAINS, BUT I THINK I WILL ADDRESS MY COMMENTS PRIMARILY TO COUNCILMEMBER BLACKABY'S SUPPLEMENTAL OF WHICH I AM A COSPONSOR. I WANT TO THANK HIM FOR HIS PRESENTATION. IT'S VERY CLEAR REASON TATIAN HAS ANSWERS TO SOME OF THE QUESTIONS THAT WERE POSED TO HIM. I WANT TO THANK HIM AND HIS STAFF FOR THE LARGE AMOUNT OF WORK THAT THEY DEDICATED TO THIS. THANK YOU SO MUCH. AND PERHAPS IT'S OBVIOUS BECAUSE I'M A COSPONSOR, BUT I DO AGREE WITH

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COUNCILMEMBER BLACKABY THAT GIVEN THE RESULTS OF THE EVACUATION STUDY AND WITH THE FIRE DEPARTMENT HAS TOLD US, WE SHOULD KEEP A.D.U. DEVELOPMENT IN THE HILLS CLOSE TO WHAT IS MANDATED IN THE STATE. NOW WE CAN SAY I DON'T REALLY LIKE THIS OUTCOME. I DON'T LIKE ANYTHING THAT CREATES A DEGREE OF GEOGRAPHIC INEQUITY IN THE CITY, BUT I HAVE TO DIG INTO THE DATA AND EVIDENCE THAT'S AVAILABLE TO US, AND THAT EVIDENCE SHOWS THAT MORE PEOPLE UP IN THE HILLS WILL BE MORE CONGESTION AND WE KNOW WHAT LARGER STRUCTURES IN THE HILLS MEANS. MORE ENERGY FUEL FOR POTENTIAL FIRES. THE STRUCTURES ARE HUGE SOURCES OF FUEL. AND OF CONTRARY EVIDENCE COMES BEFORE US I'LL BE CHANGING THIS DECISION. LIMITING, NOT BANNING, RATHER THAN THE MORE PERMISSIBLE ADOPTING OUTSIDE THE HILL ZONES WHICH I ENTHUSIASTICALLY SUPPORT. BECAUSE THE HILLS FRANKLY DON'T HAVE GOOD TRANSIT, IT'S AWFUL, WE HAVE SENT LETTERS TO A.C. TRANSIT TO NO AVAIL. IT'S REALLY, REALLY SCANTY BUS SERVICE. HENCE THEY DON'T HAVE GOOD TRANSIT ACCESS TO JOBS. REALLY NOT GOOD PEDESTRIAN ACCESS TO JOBS. AND IT'S ALL HOUSES AND NOT URBAN AMENITIES. SOME OF US ARE DISMAYED BY THIS OUTCOME. BUT I'M DISAPPOINTED THAT WILDFIRE TRENDS ARE PUSHING US IN THIS DIRECTION BUT THEY ARE. I THINK THE SQUARE FOOTAGE SUGGESTED BY COUNCILMEMBER BLACKABY ARE A REASONABLE COMPROMISE FOR SAFETY AND EQUITY. I'M A BIT MORE AGNOSTIC ABOUT QUESTION OF HEIGHT ESPECIALLY AS IT RELATES TO ATTACHED A.D.U.'S, I THINK

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THE SQUARE FOOTAGE WAS THE MAIN THING TO CONTROL BUT I DON'T THINK IT'S NECESSARILY A BAD THING TO ADOPT CLOSER TO STATE STANDARD. AND AS WE HAVE HEARD FROM OUR FIRE CHIEF, THERE PROBABLY, IS SIX OF ONE HALF DOZEN OF THE OTHER AND MAY ACTUALLY BE, I THINK, BETTER TO HAVE A STRUCTURE THAT IS TALLER GIVEN THE SAME SQUARE FOOTAGE BECAUSE IT WILL BE THEORETICALLY SEPARATED FROM ITS ADJACENT BUILDINGS. THEY WILL BE TALLER AND SKINNIER AND THE EXTRA TWO FEET DON'T MAKE A DIFFERENCE. I WOULD BE MORE IN FAVOR OF THE 20-FOOT LIMIT, RATHER THAN AN 18-FOOT LIMIT. AT ANY RATE, I THINK THAT'S PRETTY MUCH IT. I GUESS I RESPECTFULLY MIGHT DISAGREE WITH COUNCILMEMBER BLACKABY'S AMENDMENT HE CREATED TODAY ABOUT ROOFTOP DECKS. WE HEARD FROM CHIEF SPRAGUE, IF IT'S NEW CONSTRUCTION AND IT'S CHAPTER 7 COMPLIANT, HE DOESN'T SEE A PROBLEM WITH ROOFTOP DECKS. THEY ARE VERY COOL AND YOU HAVE GREAT VIEWS AVAILABLE. I WOULD BE IN FAVOR OF ALLOWING ROOFTOP DECKS IN NEW CONSTRUCTION. THANK YOU.

>> MAYOR ISHII: THANK YOU. MOVING ONTO COUNCILMEMBER O'KEEFE? YES.

>> S. O'KEEFE: THANK YOU VERY MUCH COUNCILMEMBER BLACKABY FOR TAKING THE LEAD ON THIS. I WAS HAPPY TO CO-SPONSOR. I JUST WANT TO SAY, I'M PRETTY SURE, I REALLY WANT TO RETURN TO THE BASIC PHILOSOPHY OF THE SUPPLEMENTAL, WHICH IS THIS IS BEING MINIMUM REQUIRED A.D.U. STANDARDS WE CAN PASS AND STILL COMPLY WITH THE

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STATE LAW. THAT'S WHERE THIS IS COMING FROM. IT GIVES US (INDISCERNIBLE) FOR FIRE CHIEF AND APPROACH WHAT I'M CONSIDERING TO BE A LIFE SCALE, A MATTER OF LIFE SCALE PUBLIC SAFETY. GIVEN THE MAGNITUDE OF THE RISK THAT'S PRESENTED, THE RISK OF WILDFIRE, ESPECIALLY AFTER SEEING THE EVACUATION STUDY, I AM A MAXIMALIST. WE HAVE TO COMPLY WITH STATE LAW BUT NOTHING MORE. SO THAT'S ALL I WANT TO SAY, I WANT TO HIGHLIGHT THE PHILOSOPHICAL WHY I'M SUPPORTING IT AND I THINK WHY COUNCILMEMBER BLACKABY WROTE IT IN THE FIRST PLACE. I JOIN HIM AND COUNCILMEMBER BLACKABY, WITH ROOF DECKS, SOUNDS LIKE THERE'S A DISAGREEMENT. I WANT TO TAKE EVERY OPPORTUNITY TO MINIMIZE MORE FIRE FUEL AND DENSITY IN THE HILLS.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TREGUB?

>> I. TREGUB: I HAD ONE, I THINK, FINAL QUESTION. JUST ON THE HEIGHT OF (INDISCERNIBLE) OR ROOF DECKS, IS HEIGHT BEING DEFINED THE SAME WAY THAT JUST HEIGHT IN GENERAL IS BEING DEFINED IN THE HILLS OVERLAY, GIVEN THAT THERE ARE SOME NON-STANDARD EXISTING CONDITIONS, THINGS ARE INCLINED, JUST WANTED TO CONFIRM.

>> YEAH, SO THE HEIGHT THAT WE ARE USING TO DETERMINE THE HEIGHT OF THE ROOFTOP DECK IS THE MAXIMUM HEIGHT BECAUSE THEY ARE FLAT. SO THAT'S CONSISTENT WITH HOW WE MEASURE HEIGHT ACROSS ZONING DISTRICTS.

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>> I. TREGUB: YEAH. ON THE HEIGHT ISSUE, I'M IN THE FLATS. I WILL DEFER TO, IT SOUNDS LIKE THERE MAY BE DISAGREEMENT WITH THE HILLS COUNCILMEMBERS ON JUST THAT ONE PIECE. I'M GOING TO DEFER TO THE MAJORITY OF THE HILLS COUNCILMEMBERS. I KNOW THAT ALL OF US ARE JUST TRYING TO FIND THE RIGHT BALANCE BETWEEN MAXIMIZING OPPORTUNITIES FOR HOUSING AND REDUCING FIRE LOAD. THANK YOU.

>> YEAH, SO I DON'T THINK THAT -- I JUST WANTED TO CHECK. OH, GO AHEAD, COUNCILMEMBER.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. JUST GIVE ME A MOMENT HERE. OKAY. I WANT TO THANK OUR PLANNING STAFF AGAIN, THE PUBLIC COMMENTERS AGAIN, MY COUNCIL COLLEAGUES. AND I DON'T THINK, WELL I THINK DIRECTOR KLEIN HAD STATED THIS, I JUST WANTED TO REITERATE WE ARE HERE BECAUSE THE STATE HOUSING AND COMMUNITY DEVELOPMENT DEPARTMENT SENT OUR PLANNING DEPARTMENT A LETTER LAST YEAR NOTING CERTAIN ASPECTS OF OUR ACCESSORY DWELLING UNIT ORDINANCE WERE NOT IN COMPLIANCE WITH STATE A.D.U. LAW. IN ADDITION TO MAKING THOSE CORRECTIONS, THERE ARE, AS WE HEARD, SOME ADDITIONAL IMPORTANT CHANGES THE PLANNING COMMISSION IS RECOMMENDED THAT HAD BEEN INCORPORATED IN THE PROPOSED ORDINANCE BEFORE US TONIGHT. I JUST WANT TO SPEAK IN SUPPORT OF TWO OF THEM. AND I ALSO JUST WANT TO RECOGNIZE AND APPRECIATE THAT MY COLLEAGUES HAVEN'T ASKED TO ALTER THE STANDARDS OUTSIDE THE HILLSIDE OVERLAY ZONE. BECAUSE AS COUNCILMEMBER BLACKABY HAS

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SAID, WE NEED TO BE FLEXIBLE WHERE IT'S SAFER TO DO SO. SO I DO WANT TO EXPLAIN, INCREASING THE MAXIMUM ALLOWABLE SIZE TO 1200 SQUARE FEET, THIS IS THE MAXIMUM SIZE ALLOWED UNDER STATE LAW. THIS INCREASE IN MAXIMUM SIZE WOULD GIVE HOMEOWNERS THE FLEXIBILITY TO DESIGN A BACKYARD COTTAGE THAT COULD BE LARGE ENOUGH TO ACCOMMODATE A FAMILY. OR ACCOMMODATE OBVIOUSLY MORE THAN WHAT YOU CAN GET WITH 1,000 SQUARE FEET. IT DOESN'T REQUIRE YOU TO DO A LARGER A.D.U.,, IT SIMPLY GIVES YOU THE FLEXIBILITY TO DO SO. I THINK IT'S IMPORTANT FOR ALL OF US TO KEEP IN MIND THAT CONSTRUCTION COSTS ARE VERY HIGH. AND IN MY EXPERIENCE, PEOPLE ARE NOT GOING TO BUILD THE ADDITIONAL SPACE UNLESS THEY REALLY NEED IT. SO I THINK WE SHOULDN'T LET OUR RULES BE THE BARRIER TO GIVING PEOPLE THE LIVING SPACE THEY MAY NEED. NEXT ON INCREASING THE HEIGHT TO 25 FEET FOR ATTACHED AND DETACHED A.D.U.'S, YOU KNOW, I THINK WE ALL AGREE THAT IS APPROPRIATE OUTSIDE OF THE HILLSIDE OVERLAY ZONE. THE ATTACHED A.D.U.'S ALREADY HAD THE ABILITY TO GO UP TO 25 FEET. SO, YOU KNOW, WHAT I SAW IN THE PLANNING COMMISSION HAD PROPOSED THAT BOTH THE ATTACHED AND DETACHED SHOULD HAVE THAT SAME HEIGHT STANDARD. IT DID MAKE SENSE TO ME. IT SEEMS A LITTLE ODD TO ALLOW A DIFFERENT STANDARD BASED ON WHETHER YOU ARE ATTACHED OR DETACHED. I DON'T THINK PEOPLE SHOULD BE CHANGING THEIR DECISION ABOUT THEIR A.D.U. BASED ON HOW MUCH HEIGHT THEY CAN GET, WHETHER THEY HAVE

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THE ATTACHED OR DETACHED. I THINK WE SHOULD GIVE PEOPLE THE FLEXIBILITY TO DO THINGS AS THEY SEE FIT FOR THEIR PROPERTY. MAYBE IT'S DESIGNED SUCH THAT YOU HAVE THE MAIN HOUSE AT THE VERY FRONT OF THE PARCEL WITH VERY LITTLE FRONT SETBACK AND THEY WANT TO HAVE THE TALLER STRUCTURE AT THE VERY BACK OF THE PARCEL AND HAVE A SHARED BACKYARD IN THE MIDDLE. I DON'T THINK WE SHOULD GET IN THE WAY OF LETTING PEOPLE DO WHAT THEY WANT TO DO. I RESPECT THE CONCERNS THAT COUNCILMEMBER BLACKABY EXPRESSED IN THE SUPPLEMENTAL REPORT. I RECOGNIZE THERE WERE THREE OTHER COUNCILMEMBERS, TWO OTHER COUNCILMEMBERS AND THE MAYOR WHO HAD CO-SPONSORED IT. AND I DO APPRECIATE THE SPECIFIC FINDINGS RELATED TO WILDFIRE RISK. I THINK THE SORT OF INTELLECTUAL STRUGGLE THAT I HAVE IS THAT THIS COUNCIL AND PRIOR COUNCILS HAVE APPROVED REMODEL AND NEW LARGE SINGLE FAMILY HOMES IN THE HILLSIDE OVERLAY ZONE. EARLIER THIS YEAR THIS COUNCIL APPROVED THE DEMOLITION OF A 2,760 SQUARE FOOT SINGLE FAMILY DWELLING AND ALLOWED NEW TWO STORY 25-FOOT TALL, 3600 SQUARE FOOT SINGLE FAMILY DWELLING AT 1048 KEITH AVENUE. I THINK IN THE BACK OF MY MIND, I ASSUME IN THE BACK OF A LOT OF OUR MINDS WE ARE THINKING GOSH, THAT IS PRETTY DARN BIG IN AN AREA WHERE OUR FIRE CHIEF IS TELLING US ANY NEW STRUCTURES POSES AN INCREASED FIRE RISK. SO AS YOU CAN IMAGINE, IT'S HARD TO ACCEPT THAT WE HAD NO RESTRICTIONS ON THE LARGE UNAFFORDABLE HOME. WE ASK NO

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QUESTIONED ABOUT HOW MANY PEOPLE ARE GOING TO BE HOUSED IN A 3,600 SQUARE FEET. MAYBE WE MAKE ASSUMPTIONS ABOUT THAT LARGE SINGLE FAMILY HOME AND HOW IT WILL BE USED. BUT WE ARE PROPOSING RESTRICTIONS ON SMALL HOMES THAT ARE MORE AFFORDABLE BY DESIGN. AND IN MY EXPERIENCE, THE PEOPLE MAKING THE ACCESSORY DWELLING UNIT ARE DOING IT BECAUSE THEY DON'T HAVE THE LIVING SPACE, THEY REALLY NEED IT. I'M GOING TO WRAP UP HERE. I THINK WE SHOULD KEEP THE CURRENT HEIGHT STANDARD WE HAVE FOR THE HILLS. I UNDERSTAND COUNCILMEMBER BLACKABY HAS PROPOSED TO REDUCE WHAT WE CURRENTLY HAVE. CURRENTLY PEOPLE HAVE THE ABILITY TO DO 20 FEET. AND WE HEARD FROM CHIEF SPRAGUE THAT 20 FEET OF HEIGHT, TWO ADDITIONAL FEET WOULD NOT POSE ADDITIONAL FIRE RISK. THIS MEANS WE PROBABLY ALREADY HAVE A FEW 20-FOOT A.D.U.'S IN THE HILLS. HOMEOWNERS DESIGNING A.D.U.'S OF 20 FEET RIGHT NOW. AND I'M NOT INCLINED TO TAKE AWAY THE FLEXIBILITY WE ARE CURRENTLY PROVIDING. ESPECIALLY WHEN WE ARE HEARING THERE IS NO INCREASED FIRE RISK. WE ALSO KNOW 20 FEET MAKES IT EASIER TO BUILD A TWO STORY A.D.U. THAT COULD TAKE UP LESS SPACE IN THE YARD AND POTENTIALLY CREATE SEPARATION.

>> MAYOR ISHII: FOLKS.

>> R. KESARWANI: I'M REALLY ALMOST DONE. I DO APPRECIATE THAT COUNCILMEMBER BLACKABY IS PROPOSING TO KEEP THE CURRENT SIZE STANDARDS AND NOT REDUCE IT. I DO APPRECIATE THAT WE WANT TO

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KEEP THE SAME STANDARD. I DO JUST WANT TO SAY --

>> MAYOR ISHII: SHE IS SPEAKING AND SOMEONE ELSE HAS GIVEN HER SOME TIME SO LET HER FINISH.

>> R. KESARWANI: THANK YOU. IF YOU ARE AN ELDERLY COUPLE WHO WANTS TO AGE IN PLACE AND HAVE YOUR ADULT CHILD LIVE IN THE MAIN HOUSE. MAYBE ONE IS IN A WHEELCHAIR AND NEED MORE SQUARE FOOTAGE TO MANEUVER AND THEY ONLY WANT ONE BEDROOM. I THINK THAT'S WHERE THE PLANNING COMMISSION WAS COMING FROM WHEN THEY REMOVED THE BUILDING REQUIREMENTS AND SAID LET'S LET PEOPLE BUILD WHAT THEY NEED. I'M PERSONALLY NOT WILLING TO DENY THAT COUPLE THE LIVING SPACE THEY NEED TO BE ABLE TO AGE IN PLACE THE WAY THEY WANT TO. I RESPECT THE WILL OF THE COUNCIL WILL MOVE FORWARD AND --

>> MAYOR ISHII: CAN I GET CLEAR ON WHAT ARE YOU ASKING FOR?

>> R. KESARWANI: I'M MAKING MY COMMENTS.

>> MAYOR ISHII: OKAY. I JUST WANT TO MAKE SURE I UNDERSTAND THE COMMENT THAT YOU ARE MAKING. IF YOU ARE REQUESTING SOMETHING DIFFERENT.

>> R. KESARWANI: I'M NOT REQUESTING ANYTHING. I'M MAKING AN ARGUMENT, MAYBE I NEED TO BE MORE CLEAR. I THINK, IF WE ARE GOING TO DO SOMETHING THAT KEEPS THE CURRENT STATUS QUO FOR THE HILLS BUT IS MORE REALISTIC ABOUT HOW PEOPLE WANT TO LIVE, I THINK WE SHOULD JUST, WE KNOW PEOPLE ARE GOING TO DO 1,000 SQUARE FEET, THEY CAN DO IT IF THEY DO TWO BEDROOMS. I'M SAYING

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LET'S REMOVE THE BEDROOM REQUIREMENT AND LET'S LET THEM GO TO 1,000 SQUARE FEET IF THEY WANT TO, IT'S ONLY 150 SQUARE FEET MORE. I HEARD FROM COUNCILMEMBER HUMBERT WHO REPRESENTS THE HILLSIDE ZONE HE IS LESS COMFORTABLE DOING THAT. I'M GOING TO TAKE MY TIME TO EXPLAIN WHY I THINK IT'S WORTHY OF CONSIDERATION. I DO WANT US TO LAND SOMETHING. SO LET ME STOP BECAUSE I'VE GONE WAY OVER MY TIME. THAT'S IT FOR NOW, THANK YOU.

>> MAYOR ISHII: OKAY, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: TWO THINGS, ONE ON THE ROOFTOP COMPONENT, I HEAR AND RESPECT THE FEEDBACK. IT'S LESS ABOUT THE STRUCTURE OF THE DECK BUT ALSO WHAT WILL BE ON THE DECK. THE FLAMMABILITY OF THE CHAIRS, IT'S WHAT'S ON THE DECK. THAT'S CONSISTENT WITH WHAT'S CONCERN ABOUT ZONE ZERO AND AREA AROUND THE SIDE OF THE HOME. FOR ME IT'S NOT THE DECK ITSELF, THE DECK TO BE BUILT TO A GREAT STANDARD. IT'S WHAT'S ON THE DECK, IS IT GOING TO BE REMOVED DURING FIRE WEATHER. THE SAME THING WHAT SHOWS UP IN ZONE ZERO. THAT'S WHY I HAVE A CONCERN ABOUT THE ROOFTOP DECK. SECOND POINT, SANTA BARBARA HAS DONE AND THANK YOU TO STAFF FOR POINTING THIS OUT. THEY HAVE DONE SIMILAR TO WHAT WE ARE PROPOSING HERE, SO I DO FEEL COMFORTABLE WITH THE APPROACH WE ARE PROPOSING. I FEEL COMFORTABLE WITH THE STRUCTURE WE ARE PROPOSING. CAN I YIELD TO COUNCILMEMBER O'KEEFE WHO I THINK

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WANTED TO ADDRESS A COMPONENT OF THE CONSTRUCTION.

>> MAYOR ISHII: SURE, GO AHEAD.

>> S. O'KEEFE: THANKS, COUNCILMEMBER BLACKABY. I JUST HAD A COUNTER TO THE ARGUMENT THAT COUNCILMEMBER KESARWANI BROUGHT UP REGARDING THE (INDISCERNIBLE) US APPROVING A LARGE CONSTRUCTION, CONSTRUCTION OF A LARGE SINGLE FAMILY HOME IN THE HILLS. I THINK ONE IMPORTANT THING TO REALIZE IS THAT MOST OF THE EXISTING STRUCTURES IN THE HILLS ARE NOT UP TO MODERN FIRE STANDARDS SO ACTUALLY DEMOLISHING ONE AND BUILDING A MODERN BUILDING IS A HUGE WIN IN TERMS OF FIRE SAFETY. RIGHT NOW WE ARE TALKING ABOUT BUILDING NEW STRUCTURES OR NOT. ALL OF WHICH WILL BE UP TO MODERN FIRE STANDARDS. THAT ISSUE ISN'T AT PLAY HERE BUT IT IS AT PLAY WHEN WE ARE TALKING ABOUT DEMOLISHING, SO THAT IS ACTUALLY SAY DIFFERENT SITUATION.

>> MAYOR ISHII: OKAY, COUNCILMEMBER TO BE FAIR, I WASN'T ASKING YOU, I WAS JUST TRYING TO UNDERSTAND WHAT YOU WERE SAYING. I THINK I AGREE WITH PARTS OF WHAT YOU WERE SAYING BUT I WASN'T FULLY CLEAR. I JUST WANT TO MAKE SOME COMMENTS BY SAYING THAT THE REASON I JOINED ONTO COUNCILMEMBER HUMBERT'S ITEM BECAUSE AS MENTIONED WE HAVE BEEN DOING A LOT OF WORK WITH EMBER AND IT MAKES SENSE WE WOULD BE CONCERNED ABOUT THIS. WE REMOVED FROM THE MIDDLE HOUSING ORDINANCE THE HILLSIDE OVERLAY. THERE'S A CONCERN ABOUT BEING CONSISTENT. AFTER THINKING ABOUT IT MORE AND

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HEARING FROM THE CHIEF, I'M INTERESTED IN HAVING 20 FEET ACROSS THE DETACHED SO THERE'S CONSISTENCY. I THINK YOUR POINT, COUNCILMEMBER KESARWANI ABOUT BEDROOMS IS SIMILAR TO OUR CONVERSATION WE HAD AROUND THE MIDDLE HOUSING ORDINANCE. IF THE SQUARE FOOTAGE COULD BE THE SAME IT DOESN'T REALLY MATTER HOW MANY BEDROOMS IT SHOULD BE CONSISTENT ACROSS. BUT I HEAR WHAT YOU ALL ARE SAYING. I UNDERSTAND THE VARIOUS POINTS TO THIS. SO I'M WONDERING IF THERE'S A MOTION.

>> I DON'T HAVE A MOTION BUT THERE'S SOMETHING I WANT TO BRING UP.

>> C. LUNAPARRA: THANK YOU, I THINK WHAT COUNCILMEMBER KESARWANI MAKE DOLLARS A LOT OF SENSE. I CAN KIND OF DEFER TO HER BUT ALSO WANT TO SAY WHILE WE WERE ON ZAB WE APPROVED A NEW SINGLE FAMILY HOME ON AN EMPTY LOT THAT WAS THREE STORIES. THE POINT OF THIS ISN'T NECESSARILY THAT WE APPROVE THAT SPECIFIC HOUSE THAT IS DEMOLISHED AND REBUILT BUT SIMPLY OUR STANDARDS FOR SINGLE FAMILY HOMES DON'T MATCH OUR STANDARDS FOR A.D.U.'S AND THAT DOESN'T MAKE ANY SENSE.

>> MAYOR ISHII: I JUST WANT TO ADD ALSO ABOUT THE DECKS, I'M ALSO SUPPORTIVE OF THE DECK ON A NEW BUILDING BECAUSE THOSE REQUIREMENTS ARE STRICTER IN TERMS OF FIRE SAFETY. DID YOU HAVE ANOTHER COMMENT COUNCILMEMBER HUMBERT?

>> B. BLACKABY: I'M PREPARED TO MAKE A MOTION. MOTION IS WE

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ACCEPT STAFF RECOMMENDATION FOR TITLE 23 CHANGES WITH KESARWANI, TAPLIN RECOMMENDATION PART 3 THAT SPEAKS TO TITLE 23. WITH THE BLACKABY, HUMBERT, ISHII, O'KEEFE SUPPLEMENTAL AS-IS. PLUS THE ROOFTOP DECK PIECE THAT I ADDED TONIGHT. THAT'S MY MOTION. KESARWANI NUMBER 3. BLACKABY, AS-IS PLUS ROOFTOP DECK.

>> S. O'KEEFE: SECOND.

>> M. HUMBERT: MADAM MAYOR?

>> MAYOR ISHII: YES?

>> M. HUMBERT: IT'S ME.

>> WE WOULD LIKE TO ASK THAT YOU REMOVE FROM THE STAFF RECOMMENDATION THE PROPOSED AMENDMENT TO B.M.C. SECTION 23.306.040C2 WHICH IS A REFERENCE TO TITLE 21.

>> MAYOR ISHII: THANK YOU. GOOD CATCH.

>> IF THE MOTION COULD ALSO REFLECT THAT DELETION, IF THAT'S ACCEPTABLE TO MY SECONDER.

>> MAYOR ISHII: COUNCILMEMBER O'KEEFE, IS THAT ACCEPTABLE TO YOU AS WELL?

>> S. O'KEEFE: YES.

>> MAYOR ISHII: AND CLERK, DO YOU HAVE THAT? I KNOW THAT WAS A LITTLE COMPLICATED.

>> CITY CLERK: YES.

>> MAYOR ISHII: GO AHEAD, COUNCILMEMBER.

>> R. KESARWANI: I WANT TO THANK COUNCILMEMBER BLACKABY FOR THAT

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MOTION. I WOULD LIKE TO MAKE A SUBSTITUTE MOTION TO ADOPT TITLE 23 AS RECOMMENDED BY STAFF EXCEPT 23.306.040C2 THAT REPRESENTS TITLE 21. INCORPORATE COUNCILMEMBER BLACKABY'S PROPOSED AMENDMENTS IN FULL, EXCEPT TO CHANGE THE HEIGHT STANDARD FOR DETACHED A.D.U.'S TO 20 FEET IN ALL THREE CASES. SO 16, 18 AND 18 BECOMES 20. INCORPORATE COUNCILMEMBER KESARWANI'S AMENDMENT FOOT NOTE FOR NEW CONSTRUCTION WITH THE TWEAK THAT COUNCILMEMBER BLACKABY HAS MADE TO STRIKE NEW CONSTRUCTION IN THE HILLSIDE OVERLAY ZONE AND THAT'S THE MOTION.

>> C. LUNAPARRA: SECOND.

>> MAYOR ISHII: SORRY, JUST CLARIFICATION BECAUSE THE DECK, DO YOU HAVE ANYTHING DIFFERENT ABOUT THE DECKS AT ALL?

>> R. KESARWANI: I APOLOGIZE. I WAS GOING FROM A PRIOR COUNCILMEMBER BLACKABY PROPOSED AMENDMENT. SO I GUESS I WOULD HAVE TO CHANGE THAT. PROPOSED AMENDMENTS AS PUBLISHED. COULD I DO THAT? WOULD THAT BE OKAY?

>> MAYOR ISHII: SO AS PUBLISHED WITH YOUR CLARIFICATION, CHANGING THE HEIGHT FOR ALL DETACHED A.D.U.'S TO 20 FEET? AND SORRY?

>> R. KESARWANI: THAT'S REALLY IT. I CAN JUST REPEAT IT AGAIN. SO MOVE ADOPT TITLE 23 AS RECOMMENDED BY STAFF EXCEPT REFERENCES TO TITLE 21, INCORPORATE COUNCILMEMBER BLACKABY'S AMENDMENTS AS PUBLISHED, AND TO CHANGE THE, EXCEPT TO CHANGE THE HEIGHT

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STANDARD FOR DETACHED A.D.U.'S TO 20 FEET IN ALL THREE CASES AND INCORPORATE COUNCILMEMBER KESARWANI'S PROPOSED AMENDMENT RELATED TO THE FOOT NOTE FOR NEW CONSTRUCTION. AND I'M LEAVING OUT THE CONCEPT OF THE BEDROOMS. BECAUSE HOPEFULLY I WANT IT TO BE A CONSENSUS VOTE AND TAKE INTO ACCOUNT SOME OF WHAT I HEARD FROM FOLKS. THAT'S THE MOTION, SECONDED BY COUNCILMEMBER LUNAPARRA, THAT'S ALL. THANK YOU.

>> MAYOR ISHII: I'M CURIOUS TO SEE IF COUNCILMEMBER HUMBERT HAS ANY COMMENTS?

>> M. HUMBERT: YEAH, I WOULD LOVE TO MAKE A FRIENDLY AMENDMENT TO THE SUBSTITUTE MOTION TO ADD -- ROOFTOP DECKS. IT'S ALREADY THERE.

>> R. KESARWANI: I SHOULD SAY AS PUBLISHED WITH ALLOWANCE FOR ROOFTOP DECK.

>> MAYOR ISHII: SO YOU DON'T HAVE ANY COMMENTS ABOUT THAT?

>> R. KESARWANI: IN THE HILLSIDE OVERLAY ZONE.

>> MAYOR ISHII: OKAY.

>> R. KESARWANI: SO I JUST CLARIFIED IT IS IN THERE.

>> MAYOR ISHII: OKAY, ALL RIGHT. SO WE WILL VOTE ON THE SUBSTITUTE MOTION FIRST. COULD YOU PLEASE TAKE ROLL, CLERK?

>> CITY CLERK: JUST PROCEDURALLY, WE SHOULD CLOSE THE PUBLIC HEARING.

>> T. TAPLIN: I MOVE WE CLOSE THE PUBLIC HEARING.

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>> I. TREGUB: SECOND.

>> CITY CLERK: CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: AYE.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: AND THEN JUST TO CLARIFY THE SECONDER ON THE MAIN MOTION BY COUNCILMEMBER BLACKABY WAS?

>> B. BLACKABY: O'KEEFE.

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>> CITY CLERK: O'KEEFE. OKAY, SO VOTING ON THE SUBSTITUTE MOTION BY COUNCILMEMBER KESARWANI.

>> I. TREGUB: MADAM MAYOR, BEFORE WE DO THAT? IS IT POSSIBLE TO SEVER OUT THE PART ABOUT THE DECKS RIGHT NOW? THE DECK HEIGHT? ON THE SUP?

>> MAYOR ISHII: NO. BECAUSE IT CAN'T BE TAKEN SEPARATELY BY ITSELF. NOT TO MY KNOWLEDGE. THAT'S MY UNDERSTANDING AT LEAST.

>> CITY CLERK: WELL, CAN YOU JUST PUT THE AMENDMENT ABOUT ROOFTOP DECKS IF THAT WAS THE ONLY THING BEING VOTED ON TONIGHT, WOULD THAT BE A VALID CODE?

>> CITY MANAGER BUDDENHAGEN: YES.

>> CITY CLERK: THEN IT'S SEVERABLE.

>> MAYOR ISHII: GOOD TO KNOW. YOU WANT TO SEVER?

>> I. TREGUB: FOR CLARIFICATION, COULD I ASK FOR JUST THE COUNCILMEMBER BLACKABY PROPOSED LANGUAGE ON DECKS, CAN WE SEE THAT?

>> B. BLACKABY: SURE. ONE MOMENT.

>> I. TREGUB: BECAUSE THAT'S NEW, RIGHT?

>> B. BLACKABY: YEAH, THAT WAS A MOTION THAT WAS IN THE SUPPLEMENTAL. SECTION 8. SORRY. SECTION 9. THE MUNICIPAL CODE AS AMENDED TO READ AS FOLLOWS. AGAIN THE RED TEXT WAS ALREADY IN STAFF RECOMMENDATION. SO ROOFTOP DECKS OUTSIDE THE HILLSIDE OVERLAY, ROOFS ON A.D.U.'S MAY BE DESIGNED CONVERTED, OR USED AS

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USABLE OPEN SPACE WITH MAXIMUM ADDITIONAL HEIGHT ALLOWANCE OF 9 FEET BEYOND HEIGHT MAXIMUM ALLOWED BY DEVELOPMENT STAP ARDS ONLY TO ENABLE ROOFTOP ACCESS AND PROTECTIVE RAILINGS.

>> I. TREGUB: ROOF DECK HEIGHT APART, WHAT ARE THE REMAINING PRINCIPLE, OR WHAT ARE THE REMAINING DIFFERENCES BETWEEN THE TWO MOTIONS?

>> B. BLACKABY: IT'S THE HEIGHT.

>> I. TREGUB: IT'S THE 18 TO 20?

>> B. BLACKABY: CORRECT, 16 AND 18, AND 18 TO 20.

>> I. TREGUB: OKAY.

>> B. BLACKABY: THE POINT I WILL MAKE, THE MORE LIMITED HEIGHTS ARE MORE A FACT DENSITY (INDISCERNIBLE)

>> I. TREGUB: OKAY, THANK YOU.

>> CITY CLERK: SO JUST TO BE CLEAR, THERE'S A REQUEST TO SEVER?

>> I. TREGUB: ON THE DECK LANGUAGE.

>> CITY CLERK: AND THE DECK LANGUAGE THE SAME IN BOTH MOTIONS?

>> B. BLACKABY: SO, COUNCILMEMBER KESARWANI SAYS ALL THE DECKS ARE PERMITTED AS IN THE STAFF REPORT. THE SEVERABILITY IS TO SAY WHETHER OR NOT WE USE MY LANGUAGE FOR THE DECKS IN THE SUBSTITUTE MOTION TO START.

>> CITY CLERK: WHAT'S PENDING IS THE SUBSTITUTE MOTION. SO DO YOU WANT TO SEVER THE ROOFTOP DECK PROVISIONS THAT ARE THE SUBSTITUTE MOTION?

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>> I. TREGUB: I WOULD, YES.

>> CITY CLERK: YES.

>> R. KESARWANI: SO, MR. CITY CLERK, WHAT DOES THAT MEAN? BECAUSE I JUST WANT TO DO WHAT'S PUBLISHED IN THE PROPOSED ORDINANCE. SO ARE WE SAYING, SO WHEN WE SEVER WE VOTE ON THE ROOFTOP DECK SEPARATELY, WHAT ARE WE VOTING ON?

>> MAYOR ISHII: I WOULD THINK THAT IF YOU, WELL, OKAY.

>> CITY CLERK: ROOFTOP DECKS IN THE STAFF RECOMMENDATION.

>> B. BLACKABY: YES.

>> CITY CLERK: OKAY, SO IF YOU SEVER BOTH STAFF AMENDMENTS REGARDING ROOFTOP DECKS AND IT'S PASSED THERE WOULD BE NO AMENDMENTS TO THE ROOFTOP DECK REVISIONS.

>> R. KESARWANI: OKAY, SO THE PROBLEM THERE IS WE MAKE NO AMENDMENTS, I THINK IT'S NONSENSICAL. WE CANNOT SEVER IT.

>> MAYOR ISHII: THAT'S WHY I WAS SAYING, I DON'T THINK IT'S SEVERABLE.

>> I. TREGUB: OKAY, I UNDERSTAND. OKAY, THANK YOU.

>> MAYOR ISHII: OKAY, THANK YOU. CAN WE TAKE THE ROLL PLEASE ON THE SUBSTITUTE MOTION?

>> CITY CLERK: ON THE SUBSTITUTE MOTION BY COUNCILMEMBER KESARWANI. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

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>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: PASS.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: ABSTAIN.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: ABSTAIN.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: COUNCILMEMBER TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: OKAY, THAT MOTION CARRIES.

>> MAYOR ISHII: OKAY. THANK YOU. THANKS, EVERYONE. THANK YOU, STAFF. APPRECIATE IT. I KNOW WE ARE GOING TO COME BACK TO YOU FOR THE OTHER MATTER LATER. ALL RIGHT, I NEED LIKE A 10-MINUTE BREAK. WE ARE GOING TO TAKE A 10-MINUTE BREAK. EVERYBODY STRETCH, WHEN WE COME BACK WE HAVE ONE MORE ITEM LEFT ON THE

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AGENDA, ITEM 29. [RECORDING STOPPED] [BREAK] [BREAK]

>> MAYOR ISHII: SINCE HE IS ON THE PHONE WE CAN TAKE PUBLIC COMMENT. IS THERE ANY PUBLIC COMMENT ON THIS ITEM, ITEM #29? IF YOU HAVE PUBLIC COMMENT, PLEASE LINE UP. AND ACTUALLY, THE FIRST PERSON YOU CAN COME ON UP.

>> THANK YOU FOR YOUR TIME, COUNCILMEMBERS. MY NAME IS (INDISCERNIBLE) I RESIDE ON (INDISCERNIBLE). HOME TO BERKELEY FOR ABOUT SIX YEARS. I PROVIDE SERVICE, NOT TO MENTION, WELL BASICALLY SERVICE, BLANKETS, CLOTHING, THINGS PEOPLE NEED OUT THERE. IT'S ROUGH, ESPECIALLY AT NIGHT. SAFE HOUSE FOR ABOUT SIX YEARS. YOU KNOW, I PROMOTE THE SERVICE (INDISCERNIBLE) I'M ASKING FOR A SIX-MONTH EXTENSION AMONG A NUMBER OF THINGS. (INDISCERNIBLE) AND THAT'S ALL I'M GOING TO ACTUALLY DO IS HELPING OUT AND SERVE THE COMMUNITY.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> GOOD EVENING, MADAM MAYOR AND COUNCILMEMBERS. MY NAME IS TREVIS SMITH, I MOVED TO BERKELEY IN 1957. I'VE BEEN LIVING IN BERKELEY ABOUT 50 YEARS. THE CARLETON STREET, THEY PROVIDE GIFT SERVICES FOR THE HOMELESS THAT WE NEED, CLOTHING, SUPPLIES, TENTS, TARPS WHEN IT RAINS. I'M ASKING FOR A SIX-MONTH EXTENSION.

>> MAYOR ISHII: THANK YOU.

>> MY NAME IS [INDISCERNIBLE] I'M IN DISTRICT 5. I NOTICED

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THAT THERE'S A PICTURE HERE OF THE CARLETON STREET VACATION. THEY MEAN VACATING IT, CLEARING IT, SWEEPING IT, CLEANING IT. AND RIGHT NEXT TO IT IS BAYER. AND WE ARE BEING ASKED TO LET BAYER THAT BOUGHT MONSANTO AND ROUND-UP READY AND PESTICIDE MAKING, ONE OF THE BIGGEST POLLUTERS IN THE WORLD, WE WILL GIVE THEM THIS STRIP WHERE POOR PEOPLE ARE TRYING TO FIND A PLACE TO LIVE, OUT OF THE COLD. AND WHERE WILL THEY GO? WHERE WILL THEY GO? THERE MAY BE 500 PEOPLE, A THOUSAND PEOPLE AND ONLY 50 BEDS. WHERE ARE THE BEDS? WHERE ARE YOU GOING TO SEND THEM? NEXT DOOR. THIS IS INHUMAN.

>> MAYOR ISHII: THANK YOU.

>> HELLO, I DON'T STAY ON CARLETON.

>> MAYOR ISHII: MICROPHONE.

>> SORRY, I DON'T STAY ON CARLETON BUT I'M HERE TO SUPPORT THEM. A FRIEND OF MINE, I HAVE KNOWN HIM FOR ABOUT FIVE YEARS. HE AND I HAVE BEEN ABNORMALLY, I DON'T EVEN KNOW WHAT WORD TO USE [INDISCERNIBLE], HE IS 16 TIMES THEY SWEPT HIM. JUST IN THE LAST MONTH I HAVE BEEN ASKED TO MOVE EIGHT TIMES. HE JUST NEEDS MORE TIME; HE HAS TOO MUCH STUFF. I NEED TO MOVE NOW. [INDISCERNIBLE] I'M JUST ASKING TO GIVE HIM SOME MORE TIME TO MOVE HIS STUFF, HE HAS A LOT OF STUFF. [INDISCERNIBLE]

>> MAYOR ISHII: THANK YOU.

>> BEFORE I START MY TIME, RUSTY IS GIVING ME AN ADDITIONAL

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MINUTE.

>> MAYOR ISHII: OKAY, GO AHEAD. SO YOU WILL HAVE TWO MINUTES.

>> SHOULD BE AT TWO. RUSTY IS RIGHT IN THE BACK.

>> MAYOR ISHII: I SEE HIM, YEAH.

>> THERE WERE SOME COMMENTS THAT DOWNPLAYED THE LOSS OF HOMELESS FOLKS BELONGINGS. [INDISCERNIBLE] STARTED WITH MY FRIEND AMBER. IMAGINE IF EVERY TIME YOU LEFT YOUR HOME ALL YOUR BELONGINGS WERE UNDER THREAT BY BEING TAKEN BY CITY AGENTS BECAUSE YOU WEREN'T PROTECTED. THEN YOU FIND A PLACE WITH A SIGH OF RELIEF. [INDISCERNIBLE] ALL OF THE SUDDEN YOUR BELONGINGS ARE AGAIN UNDER THREAT BECAUSE THE GROUND HAS BEEN CEDED OUT BY YOUR LOCAL GOVERNMENT. BRINGING BACK HYPER VIGILANCE AND ANXIETY. ITEMS AREN'T READILY AVAILABLE TO THE FOLKS THEY ARE TAKEN FROM. EVEN IF IT'S STORED IN CITY STORAGE. THEY HAVE TO MAKE AN APPOINTMENT OR SHOW UP IN PERSON AND THEN JOURNEY ACROSS TIME TO THE CORPORATION YARD. FOR FOLKS WHO HAVE LIMITED ABILITY TO GET ON THE INTERNET, MANUALLY SCHEDULE APPOINTMENTS AND RELOCATE A LARGE NUMBER OF ITEMS ACCESSING COULD BE CHALLENGING IF NOT AN IMPOSSIBILITY. IF YOU ARE DISPLACING THEM THEY NEED TO BE ABLE TO RELOCATE SOMEWHERE WHERE THEY WON'T BE UNDER THREAT, OTHERWISE YOU ARE INFLICTING HARM IF YOU CONSENT TO THIS AGENDA ITEM WITHOUT ANY SUPPORTS. THANK YOU.

>> MAYOR ISHII: THANK YOU.

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>> I ALSO HAVE ANOTHER MINUTE.

>> MAYOR ISHII: IS HE HERE?

>> YES.

>> MAYOR ISHII: OKAY, THANK YOU.

>> GOOD EVENING, MY NAME IS LINDA DAVIS, BIOTECH PARTNERS PROVIDES A NATIONALLY RECOGNIZED BIOTECH AT BERKELEY HIGH SCHOOL. MOST OF OUR BERKELEY HIGH SCHOOL ACADEMY STUDENTS ARE INCOME CHALLENGED FAMILIES AND FACED WITH FOOD, HOME, AND TRANSPORTATION INSECURITY. THROUGH ITS DEVELOPMENT WITH THE CITY OF BERKELEY, BAYER HAS FUNDED BIOTECH PARTNERS TO TRAIN YOUNG PEOPLE FOR QUALITY BIOTECH JOBS HERE IN THE BAY AREA. VALUABLE JOBS HAVE BUSINESS SECTORS THAT PAY MORE THAN MINIMUM WAGE, ARE GROWTH SECTORS AND HAVE OPPORTUNITIES FOR ADVANCEMENT. SOME OF OUR ALUM HAVE WORKED AT BAYER FOR 25 PLUS YEARS. WE HAVE FOUND BAYER TO BE A COMMITTED PARTNER MAKING A DIFFERENCE IN THE LIVES OF OUR STUDENTS AND COMMUNITY. THEY HAVE PROVIDED DOLLARS TO PROVIDE THE NECESSARY TECHNICAL SUPPORT SUCH AS WRAPAROUND SERVICES AND PAID INTERNSHIPS AND VALUABLE INTRODUCTIONS AT THE NATIONAL, STATE AND LOCAL LEVELS TO ADVANCE OUR MISSION. WE UNDERSTAND BAYER'S NEED TO PROTECT THEIR PEOPLE, OPERATIONS AND PATIENTS. WE UNDERSTAND AND SUPPORT BAYER'S DESIRE TO HAVE A SECURE CAMPUS THAT INCLUDES THE ROADS THEY OWN PROPERTY ON BOTH SIDES OF THE STREET. THANK YOU.

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>> MAYOR ISHII: THANK YOU.

>> BAYER IS A BIOTECH MANUFACTURING CAMPUS AND THE MAJORITY OF OUR 850 EMPLOYEES HAVE NOT COMPLETED COLLEGE. AND WE ARE THE MOST DIVERSE SITE IN THE GLOBAL BAYER NETWORK. WE MAKE MEDICINES FOR PEOPLE WITH INHERITED COMPLEX BLEEDING DISORDER AND ONE OF 50 COUNTRIES AND WE ARE ALSO WORKING ON A NEW CELL THERAPY FOR PARKINSON'S DISEASE. THERE'S A DEVELOPMENT AGREEMENT WE PAY ROUGHLY $1 MILLION PER YEAR IN COMMUNITY INVESTMENTS AND THAT'S OVER AND ABOVE OUR $10 MILLION IN PROPERTY TAXES. ABOUT CARLETON. WE PURCHASED 811 CARLETON AT THE END OF 2024; IT WAS ALWAYS OUR INTENTION TO REQUEST A VACATION OF THIS SMALL PORTION OF THE STREET. THIS APPROACH IS HOW WE DEAL WITH STREETS ACROSS OUR 46 ACRES WHERE WE OWN PROPERTY ON BOTH SIDES OF THE STREET AND THERE'S NO THROUGH TRAFFIC. WE LIKE TO TAKE THAT OVER FROM THE CITY SO THAT YOU DON'T HAVE TO MAINTAIN, IT'S MOSTLY SERVICED BY OUR PEOPLE. WE LOOK FORWARD TO MAINTAINING THAT STREET AND BUILDING A BIOSWALE TO DEAL WITH SERVICE WATER RUN OFF FROM THE CARLETON CORRIDOR AND WE ARE THANKFUL TO THE CITY FOR THE OUTREACH THEY ARE CONDUCTING FOR THOSE WHO ARE LIVING IN THE PUBLIC RIGHT OF WAY WHO HAVE BEEN LIVING THERE SINCE JANUARY. THANK YOU.

>> MAYOR ISHII: THANK YOU. WHO DID YOU HAVE YOUR MINUTE FROM? YOU KNOW YOU CAN'T GIVE ANOTHER COMMENT? THANK YOU.

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>> THANK YOU.

>> GOOD EVENING. I THINK THE WORD I'M SUPPOSED TO USE THIS EVENING IS AMNESTY. CIVIL RIGHTS MATTER, AN ISSUE THAT A LOT OF PEOPLE HAVE. WRONGFULLY BEEN FLUSHED LIKE A TURD. AND LIFE -- WHEN FORCED TO MOVE AND UNETHICAL DISPOSAL OF EVERYTHING. THE C.D.C. SHOULD PROBABLY BE NOTIFIED. BECAUSE I'VE SEEN TAKE BUCKETS OF PAINT AND MIX THEM AND TRASH ELECTRONIC WASTE AND THAT'S A CONCERN OF MINE. I'M A RECYCLOLOGIST. RIGHT NOW USING THE MY SPACE AT THE CARLETON SPACE AS A MAKER SPACE.

>> MAYOR ISHII: THANK YOU.

>> I'M NEEDING A MINUTE. OKAY. I STILL HAVEN'T SEEN ANY INDICATION THIS CITY IS MAKING ANY EFFORT GENUINE OR OTHERWISE TO FIND ANY ALTERNATIVE PLACE FOR PLACE FOR THE POPULATION CURRENTLY LIVING ON CARLETON TO MOVE TO WHEN THIS VACATION WAS EXECUTED. COMMUNICATION IS KEY. REGARDLESS OF WHAT THOSE PEOPLE MAY LOOK LIKE ON THE OUTSIDE, THEY BLEED RED LIKE THE REST OF US AND LIKE YOU UP THERE. THEY ARE HUMANS AND DESERVE TO BE TREATED AS SUCH. AT THE VERY LEAST TELL THEM AHEAD OF TIME WHAT DATE THEY HAVE TO MOVE BY. THE CITY OF BERKELEY HAS A CONTRACT FOR PROVISION OF HOMELESS SERVICES BUT FROM TIME TO TIME RESIDENTS OF BERKELEY HAVE TOLD CITY COUNCIL THAT THEY AREN'T DOING THEIR JOB. THERE WAS A NEWS STORY COVERING THE AWFUL JOB, AND STILL NOTHING CHANGED. JUST TODAY I FOUND OUT THREE MONTHS AGO WING

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MOVED DOWN TO CARLETON IN A WHITE CITY OF BERKELEY CAR AND ASKED EVERYONE WHO LIVES ON THAT STREET IF THEY WANT HOUSING. LITERALLY EVERY SINGLE PERSON LIVING IN THAT ENCAMPMENT SAID YES. WAYNE SHOWED UP THAT FOLLOWING MONDAY, I WILL NEED ANOTHER MINUTE. THE FOLLOWING MONDAY, DRIVING AN AUDI AND SPENT SOME TIME TALKING WITH ONE OF THE RESIDENTS. HE THEN TOLD ALL THE RESIDENTS HE WOULD BE BACK TO DO PAPERWORK AND ASSESSMENTS WITH THEM. THAT WAS THREE MONTHS AGO. ABSOLUTELY NO ONE HAS BEEN BACK TO TALK ABOUT HOUSING OR ANY OTHER SERVICES SINCE THEN. TO THIS DATE RUSSO HAS HAD MORE ACTION ON CARLETON THAN ANYONE ON THE HOMELESS RESPONSE TEAM HAS. IN SEPTEMBER 2015 I CONDUCTED A CENSUS I PRINTED AT OFFICE DEPOT USING MY OWN MONEY. I HAD DATA ABOUT ALL THE RESIDENTS. CAUSE OF THEIR HOMELESSNESS, LENGTH OF TIME, DISABILITY STATUS, ET CETERA. I SAT DOWN WITH ALL GROUPS AND HAD ALL THE INFORMATION ON THE SPREADSHEET USING MY PHONE. THEREFORE MAKING ALL THE INFORMATION EASILY EXTRAPOLATED SHOULD ANYONE ASK FOR IT. IT WAS ONLY 70 PEOPLE. WITHOUT ANY FINANCIAL INCENTIVE. IF I CAN DO THAN THE H.R.T. CAN DO BETTER THAN THEY HAVE BEEN DOING. IF THE CITY ISN'T DOING THIS TO NEARLY PASS THE BUCK ON BAYER THEN SEND PEOPLE TO TALK TO PEOPLE WHO LIVE ON CARLETON TO LEARN THEIR NEEDS AND HELP THEM TO HAVE AN ALTERNATIVE INSTEAD OF MOVING ONTO SOME OTHER SIDEWALK OR BACK ALLEY. I KNOW IT'S NOT POSSIBLE TO GO BACK IN TIME TO DO THINGS

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RIGHT FROM THE START. BUT H.R.T. HAS TO START DOING THINGS RIGHT AT SOME POINT. THEY CAN DO BETTER, YOU CAN DO BETTER, ALL OF US CAN DO BETTER. THANK YOU.

>> I HAVE A MINUTE. I'M REBEKAH, WE PROVIDE YOUTH JOB TRAINING, WE USE BICYCLE SHOP IN BERKELEY'S AQUATIC PARK. [INDISCERNIBLE] BAYER FUNDED OUR ORGANIZATION, PROVIDED SERVICES TO PEOPLE. AND HELPING PEOPLE AVOID HOMELESSNESS. WE GIVE FREE BICYCLES AND BIKE REPAIR SERVICE TO THOSE WHO NEED THEM AND HELP YOUTH WHO USE OUR PROGRAM SECURE HOUSING. MAKING A DIFFERENCE IN OUR COMMUNITY. WE SUPPORT BAYER'S EFFORTS TO SUPPORT THE HEALTH OF THE LAGOON. WE ALSO SUPPORT BAYER'S DESIRE TO HAVE A SECURE CAMPUS THAT INCLUDES ROADS THEY OWN PROPERTY ON BOTH SIDES OF THE STREET. WE UNDERSTAND THEIR NEED TO PROTECT THEIR OPERATIONS, PEOPLE AND PATIENTS. [INDISCERNIBLE] WORKING ON CELL THERAPY PEOPLE SUFFERING FROM PARKINSON'S RIGHT HERE IN BERKELEY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING. MY NAME IS KIRSTEN SHORES; I'VE BEEN A BERKELEY RESIDENT SINCE 1991. IT WAS NOT EASY TO COME IN TONIGHT. LAST CITY COUNCIL MEETING [INDISCERNIBLE] I WAS RESCUED AND THE NEXT DAY THEY DECIDED TO PUBLISH [INDISCERNIBLE] I CAME HERE TO ASK [INDISCERNIBLE]

>> MAYOR ISHII: I'M SORRY, IS THIS RELEVANT TO THIS ITEM WE ARE

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ON? IS THIS RELATED TO THE ITEM?

>> CITY CLERK: THIS IS FOR THE SPECIFIC ITEM #29.

>> I WANT TO GET TO THAT. AS A RESULT SPEAKING UP HOMELESS, I BECAME HOMELESS ON NOVEMBER 7TH LAST YEAR AND I'VE BEEN LIVING IN MY CAR EVER SINCE. CAN SOMEBODY ELSE GIVE ME THEIR MINUTE, PLEASE?

>> MAYOR ISHII: I'M SORRY, I DON'T THINK THERE IS SOMEONE WHO CAN.

>> OKAY, I WILL BE BACK AFTER THE SUMMER BREAK AND MAKE A POINT ABOUT --

>> MAYOR ISHII: THANK YOU.

>> ABOUT HUMAN TRAFFICKING. THAT'S THE REASON WHY.

>> MAYOR ISHII: IF YOU WOULD LIKE TO SPEAK ABOUT HUMAN TRAFFICKING, LATER, WE WILL HAVE AN OFF-AGENDA.

>> THANK YOU VERY MUCH, MAYOR.

>> MAYOR ISHII: OKAY. GO AHEAD.

>> HELP ME UNDERSTAND. HELP ME UNDERSTAND, ARE WE TALKING ABOUT THE CITY OF BERKELEY GIVING BAYER, WHOSE CONNECTED WITH MONSANTO, WHO MAKES ROUNDUP FOR FREE, DISPLACING UNHOUSED PEOPLE, WHO THE CITY OF BERKELEY HAS REFUSED TO GIVE ANY SANCTIONED PLACE TO GO? WHO HAS THE H.R.T. WHO HAS NOT DONE THEIR JOB. READING THAT REPORT TONIGHT. THEY'RE NOT GIVING DUMPSTERS. LOOK AT 8TH AND HARRISON STREET. THEY AREN'T

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PROVIDING TOILETS. AND YOU ARE GOING TO GIVE BAYER, THAT IS CONNECTED WITH MONSANTO, ARE YOU LISTENING TO YOURSELVES? FOR FREE? AND YOU WILL NOT GIVE THE PEOPLE OF BERKELEY WHO NEED HOMES A PLACE TO BRING THEIR TENTS AND LIVE SAFELY. TERRY TAPLIN, DO YOU HEAR ME? YOU ARE MY REPRESENTATIVE.

>> MAYOR ISHII: PLEASE ADDRESS --

>> I'M SORRY, HE IS MY REPRESENTATIVE AND HE DOES NOT RESPOND. IT'S DISGUSTING.

>> CITY CLERK: NEXT SPEAKER.

>> I'M SPEAKING ON MY INDIVIDUAL CAPACITY; I PRESUME THE CITY HAS THEIR REASON FOR MAKING THIS DECISION. WE ARE BACK TO THE SAME DECISION OVER AND OVER AGAIN, WHERE ARE THE PEOPLE GOING TO GO? ARE PEOPLE GOING INTO THE HOMELESS RESPONSE TEAM, IS SOMEONE GOING TO COME UP TO THEM AND ACTUALLY OFFER THEM A PLACE TO STAY? BASED ON THE REPORT THAT I HAVE HAD SOMETHING, THAT WAS REFERRED TO ME FROM A DISTRICT 1 HOMEOWNER WHO CONTACTED ME, HE IS TRYING TO HELP SOMEBODY WHO HASN'T BEEN CONTACTED IN ABOUT THREE YEARS FOR HOUSING. THEY HAVE FALLEN IN THE SYSTEM. SO HOW ARE WE GOING TO TAKE CARE OF ADDITIONAL PEOPLE AND GIVE THEM A PLACE TO STAY? WHILE EDUCATED PEOPLE IN THIS COMMUNITY DON'T UNDERSTAND OUR HOMELESSNESS, IT'S SO COMPLEX AND THE NUANCES HOW DO WE EXPECT PEOPLE WHO ARE HOMELESS, WITH VARIOUS CHALLENGES WHETHER LITERACY OR COGNITIVE CHALLENGES, DEALING WITH YEARS OF

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HOMELESSNESS.

>> MAYOR ISHII: THANK YOU.

>> TO UNDERSTAND THE SYSTEM.

>> MAYOR ISHII: THANK YOU.

>> I HAVE AN EXTRA MINUTE FROM [INDISCERNIBLE] OVER THERE. AGAIN, THANK ALL OF YOU. AND THANK EVERYONE HERE. AS I'VE MENTIONED A BUNCH OF TIMES, THERE'S A LOT OF PEOPLE IN THIS PLANET AND IN THIS CITY AND THEY HAVE DIFFERENT GIFTS THEY ARE GIVING AND DIFFERENT CHALLENGES THAT ARE PRESENTING. AND THIS IS OUR CITY. BECOME ADVERSARIAL. THE REASON WHY I CAN BARELY KEEP FROM CRYING AS I WITNESS THE PATIENCE, THE METICULOUSNESS ABOUT ALL THE RULES AND SPECIFICATIONS ABOUT A.D.U.'S. IT'S CONFOUNDING TO BE A HUMAN BEING. BUT I WILL TELL YOU SOMETHING, I DON'T HAVE ANY PATIENCE RIGHT NOW -- SOME THAT I KNOW PERSONALLY. THAT I LITERALLY HAVE TO WATCH ALMOST DIE OR DIE OR BE IN JEOPARDY OF DYING. I DON'T HAVE PATIENCE ANYMORE. BECAUSE EACH LIFE MATTERS HERE NOW. AND EACH HUMAN BEING ON THIS PLANET, EVEN IF IT'S JUST MY FOOT AND A HALF WIDTH NEED A PLACE TO STAND. AND I'VE MENTIONED THIS BEFORE. AND I UNDERSTAND ALL THE RULES AND REGS AND THREE FEET AND NINE FEET, I DON'T KNOW. SETBACKS, ET CETERA. BUT IF THERE IS NO SAFE SPACE FOR A HUMAN BEING TO BE SAFE WHO IS THEN RETRAUMATIZED. AGAIN, BORN INTO THIS EXPERIMENT, JUST IMAGINE, THE FIRST MEETING I WENT TO, I

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SAID OH PLEASE, OR GOD FORBID THERE'S AN EARTHQUAKE. WE WILL ALL GET TO EXPERIENCE WHAT I PERSONALLY HAVE AND WHAT I HAVE WITNESSED. I CAN BUILD SOMETHING AND HAVE SOMETHING WITHIN A WEEK. PLEASE HELP, PLEASE.

>> MAYOR ISHII: ANY PUBLIC COMMENTS ONLINE?

>> CITY CLERK: YES. ONLINE PUBLIC COMMENTS FOR ITEM #29. FIRST IS LESLIE BERKLER.

>> HI, CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> LESLIE BERKLER FROM THE WOMEN'S DAY-TIME DROP-IN CENTER. I WANT TO ACKNOWLEDGE THE COMPLEXITY OF THE ISSUE WITH CARLETON STREET. I AM GRATEFUL TO BAYER WHO WITH THE CITY OF BERKELEY PROVIDED DEVELOPMENT FUNDS FOR OUR BRIGITTE HOUSE IN 2004 AND SINCE 2004 WE HAVE BEEN ABLE TO PUT 80 FAMILIES IN PERMANENT SUPPORTIVE HOUSING BECAUSE OF HAVING THAT SITE REHABBED. WE HAVE BEEN GIVEN A SIX-YEAR CONTRACT, A SMALL SUBSIDY FROM BAYER TO BE ABLE TO HELP OUR HOMELESS FAMILIES IN BERKELEY SINCE THERE'S NOT ENOUGH CITY AND STATE FUNDING TO GO AROUND. I WANT TO SAY THAT I REALLY APPRECIATE THE SUPPORT OF BAYER. AND I ALSO WANT TO REQUEST THE CONTINUATION OF THE CITY STAFF LOOKING FOR ANOTHER HORIZON TRANSITIONAL VILLAGE, LIKE THE ONE THAT DOROTHY DAY HOUSE HAD A COUPLE YEARS AGO, BECAUSE I THINK THAT'S --

>> CITY CLERK: NEXT IS BETH ROESSNER.

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>> HELLO AGAIN MAYOR AND COUNCILMEMBERS. THIS IS BETH ROESSNER ON BEHALF OF THE BERKELEY CHAMBER TO SHARE OUR SUPPORT FOR ITEM 29. BAYER HAS BEEN PART OF BERKELEY ECONOMY AND COMMUNITY FOR DECADES. THEY CONTRIBUTE ABOUT $1 MILLION TO PROGRAMS FOCUSED ON STEAM, CLIMATE ACTION AND PUBLIC HEALTH, ESPECIALLY IN WEST BERKELEY. THEIR PLAN TO FOLD IN THIS SHORT SECTION OF CARLETON NOW THAT THEY OWN THE PROPERTY ON BOTH SIDES OF THE STREET IS A LOGICAL STEP IN THEIR CAMPUS PLANNING AND TAKES RESPONSIBILITY OF STREET MAINTENANCE OFF THE CITY'S PLATE. WE RECOGNIZE THE HOMELESSNESS CRISIS IS REAL AND COMPLEX. AND WE TRUST THE CITY TO CONTINUE ADDRESSING IT WITH URGENCY AND CARE WHILE ALSO SUPPORTING LONG-TIME PARTNERS LIKE BAYER. THANK YOU FOR YOUR TIME.

>> MAYOR ISHII: THANK YOU. OTHER COMMENTS?

>> CITY CLERK: NEXT IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> SO BAYER, THEY HAVE BEEN HERE A WHILE, I'VE BEEN HERE 44 YEARS. THEY ALREADY HAVE A LARGE FOOTPRINT. AND NOW YOU'RE GOING TO ALLOW THEM TO COLONIZE, VIA SETTLER COLONIAL FOOTPRINT, MOVE THE UNHOUSED, IT KIND OF SOUNDS LIKE IT'S NOT REAL, A.K.A. ISRAEL, AND HOW THEY ARE DOMINATING AND CONTROLLING AND MOVING PEOPLE OUT OF PLACES WHERE THEY LIVE. AND I ALSO HAVE AN EXTRA MINUTE FROM MY HUSBAND ROBERT WHO IS ALSO ONLINE WITH HIS HAND RAISED. AND AGAIN, BAYER, LIKE THEY SAID IS MONSANTO, ROUNDUP,

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ALSO IS G.M.O., WHICH ALSO GENETICALLY MODIFIED FOODS AND THINGS, WHICH WE KNOW ISN'T GOING TO BE GOOD FOR US AND IS INTO THE GOOD FOR THE PLANET. IT CONTAMINATES EVERYTHING AROUND IT. SO WHY WOULD YOU GIVE A MULTI-BILLION PROBABLY TRILLION-DOLLAR COMPANY A PIECE OF STREET SPACE WHERE THERE IS A COMMUNITY OF PEOPLE LIVING? IT'S IN A RED-LINED AREA. YOU NEED TO STOP DOING THIS TO PEOPLE WITHIN THESE LINES. AND STOP ACTING SO DISCRIMINATORY AND HATEFUL TOWARDS PARTS OF OUR COMMUNITY WHO LIVE ON THE STREETS. IN THEIR R.V.'S. PROVIDE SERVICES. AND SHAMEFUL, SHAMEFUL, SHAMEFUL THAT PETER RAGU, AS I CALL HIM, ISN'T --

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. ANY OTHER COMMENTS?

>> CITY CLERK: THAT'S THE LAST COMMENT.

>> MAYOR ISHII: OKAY, EARLIER. EARLIER CITY MANAGER WE JUMPED THE GUN, I WAS WONDERING IF YOU COULD SPEAK TO WHAT THE CITY IS DOING TO TRY TO SUPPORT PEOPLE ON CARLETON?

>> CITY MANAGER BUDDENHAGEN: SURE, SORRY ABOUT THAT. THE H.R.T. HAS BEEN AND WILL CONTINUE TO GO DOWN TO CARLETON STREET TO TALK TO PEOPLE WHO ARE THERE AND FIGURE OUT WHO IS THERE, GET A LIST OF NAMES AND CROSS-REFERENCE THAT WITH WHAT SERVICES PEOPLE ARE ELIGIBLE FOR IN THE SYSTEM. HOPEFULLY CONNECT PEOPLE WITH THOSE SERVICES THEY MAY BE ELIGIBLE FOR AND CONTINUE THAT WORK AS THEY NORMALLY DO.

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>> MAYOR ISHII: THANK YOU. COULD YOU SPEAK TO IF YOU HAVE INFORMATION HOW MANY TIMES THEY HAVE GONE. IF THERE ARE ANY SHELTER BEDS AVAILABLE, THAT WOULD BE HELPFUL.

>> CITY MANAGER BUDDENHAGEN: WELL, SHELTER IS CONSTANTLY IN FLUX, THERE'S NOT MUCH SHELTER RIGHT NOW, IT WILL BE SAME SORT OF MATCHING KIND OF EXERCISE OF LOOKING AT WHAT SHELTER BEDS ARE AVAILABLE AT THE TIME THEY ARE TALKING TO PEOPLE AND SEEING WHAT PEOPLE ARE INTERESTED IN.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER TAPLIN?

>> I RECEIVED A MINUTE FROM THIS GENTLEMAN IN THE BACK.

>> MAYOR ISHII: I'M SORRY, YOU HAVE ALREADY SPOKEN.

>> 15 SECONDS?

>> MAYOR ISHII: WE HAVE ACTUALLY MOVED ON ALREADY, I'M SORRY.

>> THIS HAS TO DO WITH [INDISCERNIBLE]

>> MAYOR ISHII: I'M REALLY SORRY, YOUR COMMENT PERIOD HAS ALREADY ENDED. I APOLOGIZE, BUT COUNCILMEMBER TAPLIN?

>> T. TAPLIN: I MOVE TO CLOSE THE PUBLIC HEARING.

>> SECOND.

>> CITY CLERK: OKAY, TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

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>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES .

>>> LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES. ARE THERE COMMENTS?

>> I HAVE A MOTION.

>> T. TAPLIN: I MOVE ADOPTION OF THE SECOND READING.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: SO THERE ARE NO OTHER COMMENTS? OKAY. I JUST WANTED TO SPEAK TO WHAT I SAID AT THE PREVIOUS MEETING IN CASE FOLKS AREN'T THERE, WE HAVE BEEN ADVOCATING FOR MEASURE W FUNDS AND TOMORROW THE COUNTY BOARD OF SUPERVISORS IS GOING TO BE TAKING A VOTE. I BELIEVE AT THE LAST MEETING THEY AGREED ON 80% OF THE MEASURE W. FUNDING GOING TOWARDS HOMELESS SERVICES AND

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HOUSING. SO I AM VERY EXCITED ABOUT THAT. AND I JUST WANTED TO FOLKS TO KNOW WE ARE ACTIVELY LOOKING FOR PLACES FOR PEOPLE TO GO. THIS IS A HUGE CONCERN. AND WE HAVE THIS CONVERSATION OFTEN. I REALLY THANK YOU ALL FOR YOUR PUBLIC COMMENTS. WITH THAT, IF COUNCILMEMBER BARTLETT IS STILL ONLINE, WE WILL NEED TO TAKE ROLL.

>> CITY CLERK: OKAY, TO APPROVE THE SECOND READING. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: ABSTAIN.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

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>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

>> MAYOR ISHII: THANK YOU. THAT WAS OUR FINAL ITEM FOR THE EVENING BUT THERE IS STILL PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA. AND I KNOW THERE IS SOMEONE HERE WHO WANTED TO SPEAK. YOU WILL HAVE TWO MINUTES TO SPEAK.

>> SYMONE (?) THIS IS SOMETHING THAT DOES NOT COME EASY TO ME BUT I THINK THIS NEEDS TO BE ADDRESSED. I'M A SURVIVOR OF ABUSE, HUMAN TRAFFICKING -- THIS IS SOMETHING THAT IS GOING ON RIGHT IN THE CITY OF BERKELEY, RIGHT UNDER OUR NOSES AS WE SPEAK. THE REASON I ENDED UP HOMELESS IS MY PERPETRATORS WERE ABLE TO MAKE DEALS WITH THE CITY, BASICALLY. I'M NOT VERY GOOD AT PUBLIC SPEAKING. [INDISCERNIBLE] I BASICALLY CAME UNPREPARED. IT WAS A LAST-MINUTE DECISION I FEEL LIKE I HAVE TO START SPEAKING OUT. I'VE HAD THREATS TO MY LIFE. AND I THINK PEOPLE DID NOT EXPECT ME TO MAKE IT THIS FAR AND BE HERE TONIGHT. I THINK AT THIS POINT, I WILL COME AFTER THE SUMMER SESSION BUT I WOULD LIKE TO TAKE THE REMAINING TIME AND BE SILENT FOR VICTIMS IN GAZA AND ALSO ALL THE PEOPLE WHO ARE STILL BEING TRAFFICKED RIGHT NOW. [SILENCE]

>> MAYOR ISHII: THANK YOU.

>> HI. I LOVE BERKELEY, IT'S A CITY OF PEOPLE. IT'S WONDERFUL.

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LOTS OF FLOWERS AND TODAY WAS THE MOST BEAUTIFUL SUMMER DAY I HAVE EVER KNOWN. IT FEELS I'VE LIVED THAT DAY A THOUSAND TIMES AND I HOPE TO LIVE A THOUSAND MORE. I HAVE A REQUEST OF JOY TO THE ARTISTS AND JOY TO THE ART. EVERY TIME THERE'S A HOMELESS ARTIST IS IN DANGER OF LOSING THEIR MASTERPIECES, THEIR WORK, IT'S HAPPENED TIME AND TIME AGAIN. I'M NOT LOOKING FORWARD TO FACING THAT DAY FOR MYSELF. WHICH IS WHY IF THERE WAS ANYONE THING THAT I COULD ASK OF THE PEOPLE OF BERKELEY AND THAT WOULD BE TO SUSTAIN ARTISTS IN A SITUATION WHERE THE ART WILL BE SAFE. BECAUSE I VALUE THAT OVER MY OWN LIFE, SOMETIMES. NOBODY WANTS TO BE WASTED, NOBODY WANTS TO LOSE EVERYTHING. AND THE ART ITSELF IS SPEAKING FOR ITSELF AT TIMES. AND I CAN'T WAIT TO SHOW WHAT I HAVE DISCOVERED. SO THAT BEING SAID, IT WOULD NEED TO BE DONE UNDER AN ETHICAL WAY WITH RULES AND THINGS AND MONEY WOULD BE NEEDED FOR THAT. MAYBE FUNDING WITH BAYER. SOME OF THE PLACES THEY HAVE ON THOSE DEAD-END STREETS ARE EMPTY AND COULD BE IN A FASHION MORE COMFORTABLE TO THEM AND MORE COMFORTABLE TO ARTISTS AND MAKERS. AND PERHAPS PEOPLE GOING TO THEIR SCHOOLS. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> I WAS INTERESTED TO FIND A REPORT ON THE BACK TABLE THERE OF JULIE WONG'S AUDIT OF THE HOMELESS RESPONSE TEAM. AND I THINK IT'S REALLY ENLIGHTENING AND I REALLY RECOMMEND THAT EVERYBODY

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IN THE ROOM TONIGHT, AND ALL OF YOU STUDY THIS WELL BECAUSE JULIE WONG HAS A REALLY GOOD SENSE OF BERKELEY MENTAL HEALTH COMMISSION AND I'M WONDERING WHY BERKELEY MENTAL HEALTH DEPARTMENT DIDN'T HAVE THEIR HOMELESS RESPONSE TEAM ANYMORE. LACK OF STAFFING. SO SOMEHOW THE CITY MANAGER TOOK OVER THAT JOB. AND OBVIOUSLY HE IS NOT UP TO IT. ARE THERE ANY SOCIAL WORKERS OR ANYONE OF COMPASSION ON THE RESPONSE TEAM? DO THEY GO OUT? THE OPPORTUNITIES THAT SHE SPEAKS OF IN THE LAST BERKELEY TIMES ISSUE ARE VERY GRAVE AND VERY DEEP. AND AS A COMMISSIONER, TO GIVE ADVICE ABOUT MENTAL HEALTH ISSUES, I FEEL IT'S MY DUTY, I'M SWORN TO UPHOLD, THE CITY'S MANDATES TO TAKE CARE OF OUR PEOPLE. AND IF THIS HOMELESS RESPONSE TEAM IS NOT DOING THEIR JOB, WHY NOT? WHY IS THE CITY COUNCIL GETTING MONEY TO POLICE SURVEILLANCE THINGS AND PENNIES AND NO HIRING OF PEOPLE TO DO THIS JOB THAT WAS TAKEN AWAY BECAUSE IT WASN'T BEING DONE AND IT STILL ISN'T BEING DONE. I'M REALLY CONCERNED THAT, YOU KNOW, THIS IS REAL, THIS IS NOT THE WAY IT SHOULD BE. I REALLY RESPECT JULIA WONG'S UNDERSTANDING AND I THINK THIS IS A BIG IMPORTANT THING. YOU SHOULD PUT THIS ON THE COUNCIL AGENDA NEXT TIME, ANY TIME, AS SOON AS POSSIBLE. THIS IS NOT AS BAD AS IT IS GOING TO GET AS PEOPLE LOSE THEIR HOMES.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. HER NAME IS JENNY WONG IS OUR CITY AUDITOR'S NAME. SHE WAS SUPPOSED TO GIVE THAT

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REPORT EARLIER TODAY BUT WE HAD TECHNICAL DIFFICULTIES AT OUR SPECIAL MEETING, BUT WE WILL HAVE HER COME BACK. THERE WILL BE A REPORT LATER, IN PUBLIC FOR EVERYONE DURING A SPECIAL MEETING. GO AHEAD.

>> WHEN I FIRST HEARD AUDITOR WONG I THOUGHT YOU MAKE -- SOUND INTERESTING. I ALWAYS SUPPORTED HEARING HER. WHAT I WANT TO MENTION IS CAMERAS AND CONNECTION TO I.C.E. THEY ARE ALL VERY MUCH CONNECTED. FEDERAL AGENCIES HAVE A WAY OF EXTRACTING INFORMATION FROM LOCAL AGENCIES TO GIVE TO I.C.E. AND ENABLE I.C.E., THIS IS BLOCK CAMERAS HAVE A WHOLE BUNCH OF THE COUNTRY NOW. THEIR CONNECTION TO I.C.E. IS IRREFUTABLE. IT'S ALL CONNECTED IN VARIOUS WAYS. THERE WILL BE A PRESENTATION AT SOME POINT FROM THE POLICE ACCOUNTABILITY BOARD. I.C.E. IS BECOMING A BIG THREAT TO THIS COUNTRY RIGHT NOW. I MEAN, IT'S SINCERELY SCARY WHAT THEY ARE DOING AND WHAT THEY PLAN TO DO. LIKE I SAID, [INDISCERNIBLE] ARRESTED AGAIN. [INDISCERNIBLE] IT REALLY NEEDS TO BE LOOKED INTO. PLEASE LOOK INTO THAT. IT'S CRUCIAL FOR PEOPLE'S SECURITY AND WELL-BEING. THANK YOU.

>> MAYOR ISHII: THANK YOU. ANYONE ONLINE?

>> CITY CLERK: YEAH, CHERYL DAVILA, FORMER COUNCILMEMBER.

>> SO YEAH, FLOCK CAMERA SURVEILLANCE. WHAT DOES THAT SOUND LIKE? SOUNDS LIKE IT'S NOT REAL, FASCIST TACTICS COMING INVADING BERKELEY. AND THE WAY THAT YOU JUST GIVE THINGS AWAY TO MULTI-

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BILLION DOLLAR CORPORATIONS, WHEN YOU HAVE A WHOLE LIKE, THE WHOLE AQUATIC PARK IS FOR BIOTECH. WHAT IS IT? EMPTY, VACANT, NOBODY, NO BUSINESSES ARE THERE. WHY CAN'T BAYER MOVE OVER THERE? THAT MIGHT SERVE THEM WELL. AND ALSO, I WANT TO TAKE THE REST OF MY TIME, WHICH I CAN'T SEE HOW MUCH IS LEFT BECAUSE YOU DON'T SHOW US THE CLOCK. FOR A MOMENT OF SILENCE FOR ALL THE MARTYRS IN PALESTINE AND THE RECENT MORTAR TODAY BY SETTLERS, TRYING TO PROTECT HIS LAND, HIS HOMELAND, HIS PROPERTY, KILLED BY ZIONIST SETTLERS IN PALESTINE. IN GAZA. SO THIS SILENCE. [SILENCE] FREE PALESTINE. FREE US ALL FROM THE ISMS THAT KEEP US APART. I'M PRAYING FOR BERKELEY CITY COUNCIL TO BE NON-ZIONIST AND LOOK --

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: KELLY HAMMARGREN?

>> HELLO, THIS IS KELLY HAMMARGREN. I THINK OF ALL THE TIMES THAT I'VE WATCHED CITY COUNCIL REMOTELY. TONIGHT IS THE ABSOLUTE WORST SOUND SYSTEM AND HAS JUST BEEN REALLY DIFFICULT TO FOLLOW THE MEETING. I COULDN'T REALLY TELL WHETHER YOU ACTUALLY DID THE HOMELESS MEETING OR NOT BECAUSE ON MY SCREEN, SO MUCH OF THE TIME IT WAS JUST BLANK AND LOOKING THROUGH THE CAPTIONER'S RECORD IS JUST INDISCERNIBLE, INDISCERNIBLE, INDISCERNIBLE. SO I WOULD BE INTERESTED IN HEARING, ARE WE GOING TO HEAR FROM JENNY WONG AFTER RECESS? THAT WOULD SEEM TO MAKE THE MOST SENSE, SINCE

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YOU ALL GO ON RECESS TOMORROW. AND THEN IN CLOSING, I WOULD HIGHLY RECOMMEND THAT ALL OF YOU PICK UP THE BOOK ONE DAY EVERYONE WILL SAY THEY WERE ALWAYS AGAINST THIS BY OMAR AKID. IT'S A VERY POWERFUL BOOK. AND IF YOU ARE ONLY GOING TO READ ONE BOOK ON PALESTINE AND ISRAEL, THAT'S THE ONE I RECOMMEND. OUT OF THE 24 I'VE READ. THANK YOU.

>> MAYOR ISHII: THANK YOU, KELLY. IS THAT IT FOR PUBLIC COMMENT? I WANT TO CONFIRM WHAT I SAID EARLIER, WE WEREN'T ABLE TO FINISH THE SPECIAL MEETING, WHICH WAS A PRESENTATION FROM BOTH THE HOMELESS RESPONSE TEAM AND OUR AUDITOR JENNY WONG. AND SO WE WILL BE RETURNING TO THAT, HAVING ANOTHER SPECIAL MEETING. I APOLOGIZE FOR FOLKS. I KNOW THE SOUND HAS BEEN SO BAD. AND WE ARE WORKING ON BOTH FIXING IT AND ALSO WORKING WITH THE DISTRICT ON FIGURING OUT WHAT'S GOING ON. SO THANK YOU VERY MUCH. IS THERE A MOTION TO ADJOURN?

>> T. TAPLIN: SO MOVED.

>> I. TREGUB: SECOND.

>> MAYOR ISHII: CAN YOU PLEASE TAKE THE ROLL

>> CITY CLERK:

>> CITY CLERK: OKAY, TO ADJOURN, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES .

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>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES. ALL RIGHT, THANK YOU EVERYONE. I WILL SEE YOU AFTER BREAK. [ADJOURNED 9:25 P.M.]

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